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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION**

FRANCISCUS DYLAN ROSARIO,
Plaintiff,

vs.

CSAA INSURANCE EXCHANGE; DOES 1
through 50, inclusive,
Defendants.

Case No. CGC-25-631802

**PLAINTIFF'S EXHIBIT PACKET IN
SUPPORT OF BENCH BRIEF RE
GATEWAY SEQUENCING AND
INLAND OVERSIGHT**

Date: May 13, 2026
Time: 9:00 a.m.
Dept.: 302
Judge: Hon. Joseph M. Quinn

Filed: May 12, 2026
Plaintiff Franciscus Dylan Rosario,
Self-represented

Plaintiff Franciscus Dylan Rosario, self-represented, submits the following exhibits in support of the concurrently filed Plaintiff's Bench Brief on Sequencing of Anti-SLAPP Gateways and Per-Prong Threshold Analysis under *Inland Oversight* (CGC-25-631802).

EXHIBIT INDEX

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Total pages this filing: 1 (cover/index) + 10 (separator sheets) + 82 (exhibits) = **93 pages**.

Dated: May 12, 2026

/s/ Franciscus Dylan Rosario

Plaintiff, Self-represented

EXHIBIT 1

CSAA February 25, 2021 Denial Letter

CGC-25-631802



P.O. Box 24523
Oakland, CA 94623-1523
Phone 800.922.8228
Fax 877.548.1610



000101 7117606 000 01 001

FRANCISCUS ROSARIO
835 TERRY A FRANCOIS BLVD
SAN FRANCISCO, CA 94158-2209



February 25, 2021

Re: Insured: Subhi Abdelhalim
Claim No.: 1004-09-1054
Date of Loss: February 04, 2021

Dear Franciscus Rosario:

We have concluded our investigation of your claim.

Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim. In addition, we dispute your right to recover the amount of damages you have claimed.

Our decision is based on the facts currently available. If you have any additional information which you believe is relevant to your claim, please submit that information to us for our consideration.

If you believe this claim has been wrongfully denied or rejected in whole or in part, you may have the matter reviewed by the Claims Services Bureau of the California Department of Insurance, 300 South Spring Street, Los Angeles, California 90013; Telephone: 800.927.4357 or 213.897.8921.

According to California law, you have two (2) years from the date of an incident to file a lawsuit for damages as a result of personal injury. If you sustained personal injuries as a result of the incident, you must settle your claim or file a lawsuit against those responsible for your personal injuries within two years from the date of the incident. Should you fail to do so, we will be entitled to deny your personal injury claim on that basis.

According to California law, you have three (3) years from the date of an incident to file a lawsuit for damages as a result of damage to your property. If you sustained damage to your property as a result of the incident, you must settle your claim or file a lawsuit against those responsible for the damage to your property within three years from the date of the incident. Should you fail to do so, we will be entitled to deny your property damage claim on that basis.

Should you have any questions, please do not hesitate to contact me.

Sincerely,

Sarah Rash

Sarah Rash
Claims Representative
Phone: 856-209-7086





Account No. **04767X**

CSAA-CA
Sendout 60

XM

Attention : **Tonya McConnaughay**

CSAA INSURANCE GROUP,AAA INSUR

Customer Service:

Metro Reporting Customer Support 1-800-245-6686 or help@metroreporting.com

Metropolitan Reporting Bureau
BOX 926, William Penn Annex
Philadelphia, PA 19105-0926
FAX (800) 343-9047

Type of Report: AUTO ACCIDENT

INSURED : SUBHI A ABDELHALIM
CLAIM NUMBER: 1004-09-1054
POLICY NUM. : CAAS100310857
DATE OF LOSS: 02/04/21
LOSS STREET : 5th St & Tehama St
LOSS CITY : San Francisco CA
POLICE DEPT.: NEED SIGN AUTH WITH REQ
REPORT NUM. : 210079556
INS. DRIVER : ABDELHALIM SUBHI A
OTHER DRIVER:
PCT./DIST. : SAN FRANCI
DESC.OF OTHER: v1 turning right po

THANK YOU FOR THE ORDER!

Any questions or problems please feel free to contact us.

PH. (800) 245-6686 or Help@metroreporting.com



1131096098



EXHIBIT 2

FAC Excerpt: Cause-of-Action Paragraphs (Insurance Code, UCL, Bad Faith)

CGC-25-631802

1 **CAUSES OF ACTION**

2 **FIRST CAUSE OF ACTION**

3 **FRAUD AND DECEIT (CIV. CODE §§ 1709-1710)**

4 **(AGAINST CSAA AND DOES 1-25)**

5 44. Plaintiff realleges and incorporates by reference paragraphs 1 through 43 as though fully set
6 forth herein.

7 45. On February 25, 2021, CSAA, through a claims representative whose identity is presently
8 unknown to Plaintiff and is therefore sued as Doe 1, mailed Plaintiff the Denial Letter stating
9 that CSAA had “concluded” its investigation and “concluded” that its insured was not liable, **as a**
10 **business claim decision and denial communication issued in the ordinary course of CSAA’s**
11 **claim-handling practices.**

12 46. Plaintiff alleges this statement was a representation of an existing or past fact—**investigative**
13 **finality**—namely that CSAA had already completed its investigation as of the Denial Letter date
14 and that its liability conclusion was based on that completed investigation.

15 47. Plaintiff alleges the representation was false when made because CSAA had not obtained
16 and reviewed **basic, readily obtainable, foundational objective liability evidence**—including
17 the 911 audio, body-worn camera footage, and computer aided dispatch records—as of February
18 25, 2021. Plaintiff further alleges that these categories of foundational objective evidence were
19 generated contemporaneously with the February 4, 2021 incident and were identifiable and obtain-
20 able during the period CSAA claimed its investigation had “concluded,” as alleged in paragraphs
21 19 through 21.

22 48. Plaintiff alleges CSAA knew the representation was false when made, or made it recklessly
23 without reasonable grounds for believing it to be true, **because a reasonable insurer would know**
24 **that a liability investigation cannot be truthfully described as “concluded” without obtaining**
25 **and reviewing the foundational objective incident records identified above (or, at minimum,**
26 **without knowing whether such records exist and what they show).** Plaintiff further alleges
27 CSAA made the representation **as institutional leverage**—with intent to induce Plaintiff to aban-

1 don, curtail, or discount pursuit of his claim—by falsely presenting investigative finality, shifting
2 basic evidence-procurement burdens onto Plaintiff, and increasing delay and pressure consistent
3 with deny–delay–defend claim suppression.

4 **48A.** Plaintiff alleges CSAA’s conduct was not a mere negligent miscommunication. It was an
5 affirmative business representation of investigative finality used to obtain leverage over an injured
6 claimant. Plaintiff alleges that falsely declaring an investigation “concluded” while omitting basic
7 foundational record collection constitutes despicable conduct in willful disregard of the rights of
8 others because its natural and probable consequence is to increase the claimant’s burdens, delay,
9 and coercive pressure to give up.

10 **48B.** Upon information and belief, Plaintiff alleges CSAA’s denial-letter wording and claim-handling
11 approach reflect institutional practices, training, supervision, and performance incentives that au-
12 thorize, encourage, or tolerate categorical denial communications representing investigative final-
13 ity when foundational objective evidence has not been obtained or reviewed, including claim-
14 closure targets, supervisor review practices for liability denials, and standardized denial letter tem-
15 plates.

16 **48C.** Upon information and belief, Plaintiff alleges CSAA’s officers, directors, or managing agents
17 authorized, ratified, or were aware of and consciously disregarded these practices, thereby support-
18 ing punitive damages under Civil Code section 3294 to the extent proven.

19 49. Plaintiff alleges he justifiably relied on CSAA’s representation and that his reliance was a
20 substantial factor in causing the economic losses pleaded herein.

21 50. As a direct and proximate result of CSAA’s fraud and deceit, Plaintiff alleges he incurred and
22 continues to incur damages including:

23 (a) Out-of-pocket procurement and investigation expenses incurred to obtain foundational objec-
24 tive evidence that CSAA represented had already been investigated, including fees paid to obtain
25 public records and related materials, copying/certification/retrieval fees, and transcription and re-
26 view expenses;

27 (b) Attorney fees and litigation costs incurred in the related third-party litigation that Plaintiff
28 alleges were proximately caused by CSAA’s misrepresentation and are recoverable as damages

1 under *Prentice*, subject to proof and segregation as alleged; and

2 (c) Lost earnings, diminished earning capacity, and lost productive time attributable to the in-
3 cremental procurement, review, authentication, and litigation-support burdens created by CSAA's
4 misrepresentation, segregated from attorney-fee damages and to be proven with competent, non-
5 speculative evidence, **including incremental time burdens caused by CSAA's burden-shifting**
6 **and delay leverage inherent in falsely representing investigative finality.**

7 (d) Additional medical, therapeutic, and health-related expenses proximately caused by the fraud-
8 induced delay and burdens described herein, including expenses incurred to address incremental
9 physical exacerbation and stress-related conditions;

10 (e) Incremental non-economic harm proximately caused by the fraud-induced delay and burdens,
11 including physical exacerbation, increased pain and suffering, emotional distress, humiliation, loss
12 of enjoyment of life, and impairment of ordinary functioning, all pleaded as "fraud-delta" damages
13 that are distinct from the underlying collision damages; and

14 (f) Future economic and non-economic damages proximately caused by CSAA's fraud, according
15 to proof.

16 51. Plaintiff alleges that CSAA's conduct was willful, oppressive, and fraudulent within the mean-
17 ing of Civil Code section 3294 in that CSAA stated its investigation was "concluded" and issued
18 a categorical liability denial without having obtained and reviewed foundational objective liability
19 evidence, and did so in a manner intended to convey investigative finality and to discourage or
20 defeat valid claims.

21 52. Plaintiff alleges that CSAA knew, or acted in conscious disregard of the high probability, that an
22 injured claimant faced with a categorical denial and false investigative finality would foreseeably
23 suffer substantial harm, including the shifting of evidence burdens, protracted delay, and physical
24 and psychological toll, and that CSAA's conduct was despicable in light of Plaintiff's physical
25 vulnerability and the foreseeable consequences of delay and forced proof burdens.

26 53. Plaintiff is informed and believes, and based thereon alleges, that CSAA's denial-letter lan-
27 guage and claims-handling conduct described herein was authorized, ratified, or approved by one
28 or more officers, directors, or managing agents of CSAA, or was implemented pursuant to corpo-

1 rate training, policies, metrics, or supervisory practices designed to use categorical denial commu-
2 nications to obtain claims leverage and delay, and that such authorization or ratification supports
3 an award of punitive damages against CSAA.

4 54. Plaintiff seeks compensatory damages according to proof at trial, including economic and
5 non-economic fraud-delta damages as alleged herein, and seeks punitive damages in an amount
6 sufficient to punish and deter, to the extent permitted by law.

7 **SECOND CAUSE OF ACTION**

8 **VIOLATION OF BUSINESS & PROFESSIONS CODE § 17200 (UCL)** 9 **(AGAINST CSAA AND DOES 26-50)**

10 55. Plaintiff realleges and incorporates by reference paragraphs 1 through 54 as though fully set
11 forth herein.

12 56. CSAA engaged in unlawful, unfair, and fraudulent business acts and practices within the
13 meaning of Business and Professions Code section 17200, including issuing the Denial Letter
14 as alleged above, **as part of a claim-handling practice that uses categorical “investigation**
15 **concluded” denial communications to create leverage through burden-shifting and delay.**

16 57. Unlawful: Plaintiff alleges CSAA’s conduct constitutes common-law fraud and deceit in vio-
17 lation of Civil Code sections 1709 and 1710.

18 58. Fraudulent: Plaintiff alleges CSAA’s denial-letter practice is likely to deceive because a reason-
19 able consumer would understand a statement that an investigation is “concluded” to mean the in-
20 surer has obtained and reviewed foundational objective liability evidence **or otherwise completed**
21 **the basic investigative steps necessary to truthfully represent investigative finality** before is-
22 suing a categorical liability denial, particularly where such evidence is generated at the time of the
23 incident through 911 and police response channels and is ordinarily obtainable during a routine
24 claim investigation.

25 59. Unfair: Plaintiff alleges CSAA’s practice of issuing categorical denials that state an inves-
26 tigation is “concluded” when foundational objective liability evidence has not been obtained or
27 reviewed causes substantial injury by shifting the cost of basic evidence collection and authentica-

tion burdens onto the injured claimant, **creating delay and coercive pressure consistent with a deny–delay–defend pattern that induces abandonment or undervalued resolution.**

60. Plaintiff has standing to pursue this claim because he has lost money or property as a result of CSAA’s unfair competition, including out-of-pocket procurement and investigation costs.

61. Plaintiff seeks:

- restitution of the out-of-pocket procurement and investigation costs according to proof; and
- injunctive relief enjoining CSAA from issuing denial letters stating an investigation is “concluded” **unless and until** CSAA has obtained and reviewed foundational objective liability evidence reasonably necessary to support such a representation, including where applicable 911 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly discloses that such records were not obtained and reviewed before stating any liability conclusion;**

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment as follows:

1. For restitution pursuant to Business and Professions Code section 17200, in an amount according to proof;
2. For injunctive relief enjoining CSAA from issuing denial letters stating an investigation is “concluded” **unless and until** CSAA has obtained and reviewed foundational objective liability evidence reasonably necessary to support such a representation, including where applicable 911 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly discloses that such records were not obtained and reviewed before stating any liability conclusion;**
3. For compensatory damages for economic and non-economic losses caused by fraud and deceit according to proof, including out-of-pocket procurement and investigation expenses, additional medical/therapeutic expenses, and fraud-delta physical and emotional harm as alleged;
4. For attorney fees and litigation costs as damages to the extent permitted under Prentice and proven with segregation and reasonableness as alleged;
5. For punitive damages to the extent permitted by law;
6. For costs of suit;

1 7. For prejudgment interest as permitted by law; and

2 8. For such other and further relief as the Court deems just and proper.

3 **DEMAND FOR JURY TRIAL**

4 62. Plaintiff hereby demands a trial by jury on all causes of action so triable.

5 Plaintiff will contemporaneously file or has filed a Supplemental Memorandum Statement in Sup-
6 port of Plaintiff addressing the legal and factual foundation for the denial-letter fraud theory and
7 the “concluded investigation” misrepresentation alleged herein, together with a Memorandum of
8 Points and Authorities regarding the denial-letter fraud theory, Prentice damages, and UCL injunc-
9 tive relief.

10 DATED: February 23, 2026

11 

12 Franciscus Dylan Rosario
13 FRANCISCUS DYLAN ROSARIO
14 Plaintiff, In Pro Per
15 7624 Melody, Rohnert Park, CA 94928
16 650.488.7510
17 soltrinox@gmail.com

18 **Word count: 4,518 words**

EXHIBIT 3

Insurance Code section 790.03(h) (Verbatim Statutory Text)

CGC-25-631802

practices so defined or determined.”
(Ins. Code, section 790.02.)

A.2. INSURANCE CODE SECTION 790.03(H) (UNFAIR CLAIM SETTLEMENT PRACTICES; LEAD-IN)

Verbatim lead-in:

“The following are hereby defined as unfair methods of competition and unfair and deceptive acts or practices in the business of insurance: ... (h) Knowingly committing or performing with such frequency as to indicate a general business practice any of the following unfair claims settlement practices”

(Ins. Code, section 790.03, subd. (h).)

A.3. INSURANCE CODE SECTION 790.03(H)(1) (MISREPRESENTING FACTS OR POLICY PROVISIONS)

Verbatim:

“Misrepresenting to claimants pertinent facts or insurance policy provisions relating to any coverages at issue.”

(Ins. Code, section 790.03, subd. (h)(1).)

A.4. INSURANCE CODE SECTION 790.03(H)(3) (REASONABLE STANDARDS FOR PROMPT INVESTIGATION)

Verbatim:

“Failing to adopt and implement reasonable standards for the prompt investigation and processing of claims arising under insurance policies.”

(Ins. Code, section 790.03, subd. (h)(3).)

A.5. INSURANCE CODE SECTION 790.03(H)(4) (ACKNOWLEDGE AND ACT PROMPTLY)

Verbatim:

“Failing to acknowledge and act reasonably promptly upon communications with respect to claims arising under insurance policies.”

(Ins. Code, section 790.03, subd. (h)(4).)

A.6. INSURANCE CODE SECTION 790.03(H)(5) (GOOD-FAITH SETTLEMENT)

Verbatim:

“Not attempting in good faith to effectuate prompt, fair, and equitable settlements of claims in which liability has become reasonably clear.”

1 (Ins. Code, section 790.03, subd. (h)(5).)

2 A.7. INSURANCE CODE SECTION 790.03(H)(6) (COMPELLING LITIGATION)

3 Verbatim:

4 “Compelling insureds to institute litigation to recover amounts due under an insur-
5 ance policy by offering substantially less than the amounts ultimately recovered in
6 actions brought by the insureds, when the insureds have made claims for amounts
7 reasonably similar to the amounts ultimately recovered.”

8 (Ins. Code, section 790.03, subd. (h)(6).)

9 A.8. INSURANCE CODE SECTION 790.03(H)(7) (ADVERTISING MISMATCH)

10 Verbatim:

11 “Attempting to settle a claim by an insured for less than the amount to which
12 a reasonable person would have believed that the insured was entitled by refer-
13 ence to written or printed advertising material accompanying or made part of an
14 application.”

15 (Ins. Code, section 790.03, subd. (h)(7).)

16 A.9. INSURANCE CODE SECTION 790.03(H)(11) (ARBITRATION APPEALS)

17 Verbatim:

18 “Making known to insureds or claimants a practice of the insurer of appealing
19 from arbitration awards in favor of insureds or claimants for the purpose of com-
20 pelling them to accept settlements or compromises less than the amount awarded
21 in arbitration.”

22 (Ins. Code, section 790.03, subd. (h)(11).)

23 A.10. INSURANCE CODE SECTION 790.03(H)(13) (REASONABLE EXPLANATION
24 OF DENIAL)

25 Verbatim:

26 “Failing to provide promptly a reasonable explanation of the basis relied on in the
27 insurance policy, in relation to the facts or applicable law, for the denial of a claim
28 or for the offer of a compromise settlement.”

29 (Ins. Code, section 790.03, subd. (h)(13).)

1 A.11. INSURANCE CODE SECTION 790.04 (COMMISSIONER EXAMINATION AU-
2 THORITY)

3 Paraphrased: section 790.04 authorizes the Insurance Commissioner to examine and inves-
4 tigate the affairs of every person engaged in the business of insurance in this state in order
5 to determine whether such person has been engaged in any unfair method of competition or
6 in any unfair or deceptive act or practice prohibited by section 790.03.

7 (Ins. Code, section 790.04.)

8 A.12. INSURANCE CODE SECTION 790.05 (CEASE-AND-DESIST ORDERS; MONE-
9 TARY PENALTIES)

10 Paraphrased: section 790.05 authorizes the Insurance Commissioner, after notice and hear-
11 ing, to issue cease-and-desist orders against any person engaged in the business of insurance
12 who has been or is engaged in any unfair method of competition or any unfair or deceptive act
13 or practice defined in section 790.03, and to impose monetary penalties for noncompliance.

14 (Ins. Code, section 790.05.)

15 A.13. INSURANCE CODE SECTION 791.03 (INSURANCE INFORMATION AND PRI-
16 VACY PROTECTION ACT; COLLECTION AND HANDLING)

17 Paraphrased: section 791.03 imposes notice, disclosure, and authorization requirements on
18 insurers' collection of personal information from insureds, applicants, and claimants in con-
19 nection with insurance transactions.

20 (Ins. Code, section 791.03.)

21 A.14. INSURANCE CODE SECTION 791.13 (INSURANCE INFORMATION AND PRI-
22 VACY PROTECTION ACT; DISCLOSURE LIMITATIONS)

23 Paraphrased: section 791.13 prohibits an insurance institution, agent, or insurance-support
24 organization from disclosing any personal or privileged information about an individual col-
25 lected or received in connection with an insurance transaction except as enumerated in the
26 section.

27 (Ins. Code, section 791.13.)
28

EXHIBIT 4

10 CCR sections 2695.3 to 2695.8 (Verbatim Regulatory Text)

CGC-25-631802

1 SECTION B. FAIR CLAIMS SETTLEMENT PRACTICES REGULATIONS (10 CCR
2 SECTIONS 2695.1 TO 2695.8) (EVID. CODE SECTION 451(B), SECTION 452(B))

3 Plaintiff requests judicial notice of the text of the following provisions of title 10, California
4 Code of Regulations, sections 2695.1 to 2695.8, promulgated by the Insurance Commissioner
5 under the authority of Insurance Code section 790.10 and known as the Fair Claims Set-
6 tlement Practices Regulations. Judicial notice is mandatory under Evidence Code section
7 451(b) and authorized under section 452(b). The regulations implement Insurance Code sec-
8 tion 790.03(h) and bind every insurer doing business in California, including CSAA Insurance
9 Exchange, the named defendant in CGC-25-631802.

10 B.1. 10 CCR SECTION 2695.1(A) (PURPOSE AND APPLICABILITY)

11 Verbatim:

12 “The purpose of these regulations is to promote the good faith, prompt, efficient
13 and equitable settlement of claims and to define certain minimum standards for
14 the settlement of claims which, when violated knowingly on a single occasion or
15 performed with such frequency as to indicate a general business practice shall
16 constitute an unfair claims settlement practice within the meaning of Insurance
17 Code Section 790.03(h).”

18 (10 Cal. Code Regs., section 2695.1, subd. (a).)

19 B.2. 10 CCR SECTION 2695.1(D) (MANDATORY MINIMUM STANDARDS; VIOLA-
20 TION EQUALS UNFAIR PRACTICE)

21 Verbatim:

22 “These regulations are not meant to provide the exclusive definition of all unfair
23 claims settlement practices. ... The standards in these regulations are minimum
24 standards. ... Failure of an insurer or other licensee to comply with the require-
25 ments of these regulations may constitute a violation of the Unfair Practices Act,
26 Insurance Code Section 790.02 or 790.03.”

27 (10 Cal. Code Regs., section 2695.1, subd. (d).)

28 B.3. 10 CCR SECTION 2695.2(C) (DEFINITION OF “CLAIM”)

29 Verbatim:

30 “Claim means a request or demand on an insurer for payment of benefits according
31 to the terms of an insurance policy. Claim does not include a request for coverage.”

(10 Cal. Code Regs., section 2695.2, subd. (c).)

B.4. 10 CCR SECTION 2695.2(T) (DEFINITION OF “PROOF OF CLAIM”)

Paraphrased: proof of claim means any evidence or documentation in the possession of the insurer, whether as a result of its having been submitted by the claimant or obtained by the insurer in the course of its investigation, that provides any evidence of the claim and that reasonably supports the magnitude or the amount of the claimed loss.

(10 Cal. Code Regs., section 2695.2, subd. (t).)

B.5. 10 CCR SECTION 2695.2(Y) (DEFINITION OF “INVESTIGATION”)

Paraphrased: investigation means all activities of an insurer or its claims agent related to the determination of coverage, liabilities, or nature and extent of loss or damage for which benefits are afforded by an insurance policy, obligations or duties under a bond, and other obligations or duties arising from an insurance policy or bond.

(10 Cal. Code Regs., section 2695.2, subd. (y).)

B.6. 10 CCR SECTION 2695.3 (FILE AND RECORD DOCUMENTATION)

Paraphrased: every licensee’s claim files shall contain all documents, notes, and work papers (including copies of all correspondence) which reasonably pertain to each claim in such detail that pertinent events and the dates of the events can be reconstructed; the licensee shall maintain claim data that are accessible, legible, and retrievable for examination, and the data shall be retained as required by law.

(10 Cal. Code Regs., section 2695.3.)

B.7. 10 CCR SECTION 2695.4(A) (REPRESENTATIONS TO CLAIMANTS)

Paraphrased: every insurer shall disclose to a first-party claimant or beneficiary all benefits, coverage, time limits, or other provisions of any insurance policy issued by that insurer that may apply to the claim presented; when additional benefits might reasonably be payable under an insured’s policy upon receipt of additional proofs of claim, the insurer shall immediately communicate this to the insured.

(10 Cal. Code Regs., section 2695.4, subd. (a).)

B.8. 10 CCR SECTION 2695.5(B), (C) (ACKNOWLEDGMENT AND PENDENCY)

Paraphrased: subdivision (b) requires that, upon receiving any communication from a claimant regarding a claim that reasonably suggests a response is expected, every licensee shall immediately, but in no event more than fifteen calendar days after receipt of that com-

1 munication, furnish the claimant with a complete response based on the facts as then known
2 by the licensee. Subdivision (c) requires that every insurer, upon receiving notice of claim,
3 shall immediately, but in no event more than fifteen calendar days later, acknowledge receipt
4 of such notice to the claimant and provide claim forms and instructions.

5 (10 Cal. Code Regs., section 2695.5, subds. (b), (c).)

6 B.9. 10 CCR SECTION 2695.7(B) (FORTY-DAY DETERMINATION)

7 Verbatim:

8 “Upon receiving proof of claim, every insurer, except those subject to Insurance
9 Code Sections 10169-10169.5, shall immediately, but in no event more than forty
10 (40) calendar days later, accept or deny the claim, in whole or in part.”

11 (10 Cal. Code Regs., section 2695.7, subd. (b).)

12 B.10. 10 CCR SECTION 2695.7(B)(1) (ALL BASES FOR DENIAL; WRITTEN STATE-
13 MENT)

14 Verbatim:

15 “Where an insurer denies or rejects a first party claim, in whole or in part, it shall
16 do so in writing and shall provide to the claimant a statement listing all bases for
17 such rejection or denial and the factual and legal bases for each reason given for
18 such rejection or denial which is then within the insurer’s knowledge.”

19 (10 Cal. Code Regs., section 2695.7, subd. (b)(1).)

20 B.11. 10 CCR SECTION 2695.7(B)(3) (DEPARTMENT OF INSURANCE REVIEW NO-
21 TICE)

22 Verbatim:

23 “Written notice of denial of any claim shall include a statement that, if the claimant
24 believes the claim has been wrongfully denied or rejected, he or she may have the
25 matter reviewed by the California Department of Insurance ...”

26 (10 Cal. Code Regs., section 2695.7, subd. (b)(3).)

27 B.12. 10 CCR SECTION 2695.7(C)(1) (STATUS UPDATES WHEN MORE TIME IS
28 NEEDED)

29 Verbatim:

30 “If more than forty (40) calendar days are required to determine whether a claim
31 should be accepted and/or denied in whole or in part, every insurer shall provide

1 the claimant, within forty (40) calendar days after receipt of the proof of claim,
2 with written notice of the need for additional time Such written notice shall be
3 sent every thirty (30) days thereafter”

4 (10 Cal. Code Regs., section 2695.7, subd. (c)(1).)

5 B.13. 10 CCR SECTION 2695.7(D) (THOROUGH, FAIR, AND OBJECTIVE INVESTI-
6 GATION)

7 Verbatim:

8 “Every insurer shall conduct and diligently pursue a thorough, fair and objective
9 investigation and shall not persist in seeking information not reasonably required
10 for or material to the resolution of a claim dispute.”

11 (10 Cal. Code Regs., section 2695.7, subd. (d).)

12 B.14. 10 CCR SECTION 2695.7(G) (NO UNREASONABLY LOW SETTLEMENTS)

13 Verbatim:

14 “No insurer shall attempt to settle a claim by making a settlement offer that is
15 unreasonably low.”

16 (10 Cal. Code Regs., section 2695.7, subd. (g).)

17 B.15. 10 CCR SECTION 2695.7(H) (TIMELY TENDER)

18 Paraphrased: subdivision (h) requires that, upon acceptance of the claim in whole or in part,
19 the insurer shall tender payment within thirty calendar days, subject to limited tolling for
20 claimant compliance.

21 (10 Cal. Code Regs., section 2695.7, subd. (h).)

22 B.16. 10 CCR SECTION 2695.8 (AUTOMOBILE INSURANCE)

23 Paraphrased: section 2695.8 imposes additional auto-specific duties on insurers handling
24 automobile claims, including standards for first-party and third-party automobile total losses,
25 partial losses, salvage, and storage; the section establishes prompt-payment, documentation,
26 and disclosure obligations specific to the automobile-claim context.

27 (10 Cal. Code Regs., section 2695.8.)
28

EXHIBIT 5

Notice of Lodging 911 Audio Transcript / Lodging Certificate

CGC-25-631802

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,
v.
CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S NOTICE OF LODGING TRIAL
REPORTER'S TRANSCRIPTS, AUDIO RECORDINGS,
AND CAD LOGS

(Cal. Rules of Court, rule 3.1306(c)(2))

Cross-noticed for hearing May 13, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario files this Notice of Lodging under California Rules of
3 Court, rule 3.1306(c)(2), and Evidence Code sections 1280 and 1530. Plaintiff lodges the
4 trial reporter's transcripts, audio recordings, and CAD logs identified herein for the Court's
5 review in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302. Plaintiff's
6 right to lodge non-paper evidentiary materials in advance of hearing is preserved under CRC
7 3.1306(c)(2). Filed on May 8, 2026.

8 AUTHORITY

9 Pursuant to California Rules of Court, rules 3.1306(c)(2) and 3.1116, and the applicable San
10 Francisco Superior Court Local Rules governing lodging of physical and digital materials,
11 Plaintiff Franciscus Dylan Rosario hereby gives notice of the following bulky materials lodged
12 with the Court in support of Plaintiff's three Operative Oppositions (items 01, 01B, 01C),
13 the Plaintiff's Declaration in Opposition (Plaintiff Declaration (item 04, filed May 8, 2026)),
14 and the Notice and Statement re C.C.P. § 425.17 (Notice re CCP 425.17 (item 13, filed May
15 8, 2026)), all filed May 8, 2026.

16
17 MATERIALS LODGED

18 LODGING 1: TRIAL REAL-TIME TRANSCRIPT FROM UNDERLYING MATTER CGC-
19 21-594102

20 Description: Certified trial reporter's transcript from the underlying matter Rosario v.
21 Abdelhalim, Superior Court of California, County of San Francisco, case number CGC-
22 21-594102, including the trial days containing (a) the February 18, 2025 hearing at which
23 defense counsel represented that the silent witness materials were "news to me" and of "un-
24 known origin"; and (b) the trial day containing defendant Abdelhalim's authentication of
25 the 911 audio recording: "Yes. That is my voice."

26 Authority for lodging: CRC 3.1116 (transcripts used in law and motion proceedings); CRC
27 3.1306(c)(2) (lodging of bulky material that cannot conveniently be filed or attached).

28 Access: Plaintiff will provide to defense counsel and to the Court clerk written instructions
29 for accessing the digital copy of the trial transcript on request. Certified hard copy available
30 for court inspection.

1 LODGING 2: 911 AUDIO RECORDING

2 Description: The 911 audio recording of the call made by Defendant Abdelhalim in con-
3 nection with the February 4, 2021 incident (Report No. 210079556, San Francisco Police
4 Department). This recording is the recording authenticated at trial by Defendant Abdel-
5 halim and excluded before trial by Defense Motions in Limine Nos. 6 and 17.

6 Authority for lodging: CRC 3.1306(c)(2); SF Local Rule lodging provisions for audio record-
7 ings.

8 Access: Plaintiff will provide to defense counsel and to the Court clerk written instructions
9 for accessing the digital audio file on request. The recording is in standard digital audio
10 format.

11
12 LODGING 3: BODY-WORN CAMERA FOOTAGE

13 Description: Body-worn camera footage from responding San Francisco Police Department
14 officers at the scene of the February 4, 2021 incident. This footage was excluded before trial
15 by Defense Motion in Limine No. 17.

16 Authority for lodging: CRC 3.1306(c)(2); SF Local Rule lodging provisions for video record-
17 ings.

18 Access: Plaintiff will provide to defense counsel and to the Court clerk written instructions
19 for accessing the digital video file on request.

20
21 LODGING 4: COMPUTER-AIDED DISPATCH (CAD) LOGS

22 Description: Computer-aided dispatch logs from the San Francisco Police Department for
23 Report No. 210079556 and the February 4, 2021 incident.

24 Authority for lodging: CRC 3.1306(c)(2).

25 Access: Digital file; access instructions available on request.

26
27 STATEMENT OF RELEVANCE

28 The lodged materials are relevant to:

- 29 (1) Plaintiff's Operative Opposition to Anti-SLAPP (Anti-SLAPP Opposition (item 01,
30 filed May 8, 2026)): Sections IV and V (Flatley illegality; Step Two minimal merit),
31 establishing the pre-trial possession, in-trial misrepresentation, and authentication chain

EXHIBIT 6

CSAA Claim File Page (Absence of Silent-Witness Retrieval Log)

CGC-25-631802



Account No. **04767X**

CSAA-CA
Sendout 60

XM

Attention : **Tonya McConnaughay**

CSAA INSURANCE GROUP,AAA INSUR

Customer Service:

Metro Reporting Customer Support 1-800-245-6686 or help@metroreporting.com

Metropolitan Reporting Bureau
BOX 926, William Penn Annex
Philadelphia, PA 19105-0926
FAX (800) 343-9047

Type of Report: AUTO ACCIDENT

INSURED : SUBHI A ABDELHALIM
CLAIM NUMBER: 1004-09-1054
POLICY NUM. : CAAS100310857
DATE OF LOSS: 02/04/21
LOSS STREET : 5th St & Tehama St
LOSS CITY : San Francisco CA
POLICE DEPT.: NEED SIGN AUTH WITH REQ
REPORT NUM. : 210079556
INS. DRIVER : ABDELHALIM SUBHI A
OTHER DRIVER:
PCT./DIST. : SAN FRANCI
DESC.OF OTHER: v1 turning right po

THANK YOU FOR THE ORDER!

Any questions or problems please feel free to contact us.

PH. (800) 245-6686 or Help@metroreporting.com



1131096098



EXHIBIT 7

CPRA Public-Availability Materials (Operative Complaint Paragraphs)

CGC-25-631802

1 third persons for the negligence of his agent in the transaction of the business of the agency, includ-
2 ing wrongful acts committed by such agent in and as a part of the transaction of such business, and
3 for his willful omission to fulfill the obligations of the principal.” Under § 2338, CSAA Insurance
4 Exchange is directly liable for the wrongful acts and omissions of Sarah Rash, the claims depart-
5 ment personnel who reviewed and approved the February 25, 2021 denial, and any retained claims
6 professionals or counsel acting within the scope of the claims-handling agency. Plaintiff further
7 alleges that CSAA ratified the February 25, 2021 denial and its underlying non-investigation by
8 (a) failing to correct the denial after the Title 10 CCR §§ 2695.4 and 2695.7 violations became
9 apparent; (b) maintaining the denial position through successive insurance-coverage communica-
10 tions and, later, through litigation defense of its insured; and (c) failing to repudiate the “concluded
11 investigation” representation after the January 17, 2025 / February 18, 2025 / April 16, 2025 record
12 events described in Section VIII. Under *Doctors’ Company v. Superior Court* (1989) 49 Cal.3d 39,
13 an insurer that acts outside the ordinary insurer role by directing, approving, or ratifying wrongful
14 claims-handling conduct may be held directly liable for that conduct. CSAA’s continuing fail-
15 ure to repudiate the “concluded investigation” representation, after each subsequent record event
16 placed the carrier and its panel counsel on notice of the falsity, is itself reckless disregard within
17 the meaning of Section 0 above.

18 **§I.6, GRAVAMEN DISCLAIMER (NON-COMMUNICATIVE INSTITU-** 19 **TIONAL FAILURE)**

- 20 7. The gravamen of this action is CSAA’s institutional “deny-delay-defend” failure to investi-
21 gate, not the act of writing a denial letter. The February 25, 2021 denial letter is pleaded as
22 **evidence** of the underlying non-communicative failure, not as the sole injury-producing act.
- 23 8. Among the foundational incident materials CSAA failed to obtain, review, or truthfully ac-
24 count for before the February 25, 2021 denial were the following contemporaneous San
25 Francisco first-responder records (collectively, the “**Silent Witnesses**”), each of which was
26 available from the San Francisco Police Department and/or the San Francisco Department of
27 Emergency Management within days of the February 4, 2021 collision and was obtainable by
28 routine written request under Gov. Code § 6250 et seq. (now Gov. Code §§ 7920.000 et seq.)

and Penal Code § 832.7(b):

- (a) The **911 audio recording** and associated **Computer-Aided Dispatch (CAD) event record** generated on February 4, 2021 in connection with **SFPD Incident Report No. 210083458** (on information and belief; exact SFPD incident and 911-CAD event numbers to be conformed to proof), in which CSAA's insured made statements acknowledging that he struck Plaintiff with his vehicle;
- (b) **Plaintiff's contemporaneous report to 911** emergency services, made on February 4, 2021 from the collision scene, that the driver had struck him; and
- (c) **Body-worn camera (BWC) footage** from the San Francisco Police Department officers who responded to the February 4, 2021 collision scene (responding officers' names and star numbers in the possession of SFPD and available through a routine Penal Code § 832.7(b) / Pitchess-adjacent public-records request), in which a third-party eyewitness (**Justin Rosemond**) independently corroborated that the driver struck Plaintiff.

9. Taken together, these three sources constituted virtually uncontested evidence of liability, confession, victim report, and eyewitness corroboration. CSAA denied a claim supported by all three. Under § 0.2(d) above, the closing-the-file conduct in the face of these reasonably available, identifiable-on-the-face-of-the-police-report materials is reckless disregard for the truth as a matter of law.

UCL STANDING UNDER BUSINESS AND PROFESSIONS CODE § 17200

10. Plaintiff has standing to bring a claim under Business and Professions Code § 17200 et seq. (the Unfair Competition Law) because Plaintiff has suffered injury in fact and has lost money or property as a result of Defendant's unfair, fraudulent, and unlawful business practices.

EXPRESS MORADI-SHALAL CARVE-OUT

11. This action does not assert a private cause of action under Insurance Code § 790.03, which is precluded by *Moradi-Shalal v. Fireman's Fund Insurance Companies* (1988) 46 Cal.3d 287.

12. Instead, Plaintiff asserts:

- (a) **Common-law fraud and deceit** under Civil Code §§ 1709, 1710(1), 1710(3) (intentional and reckless-disregard tiers);

EXHIBIT 8

Defense Anti-SLAPP MPA Excerpt (No section 425.17 Engagement)

CGC-25-631802

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

04/09/2026

Clerk of the Court

BY: AUSTIN LAM

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

vs.

CSAA INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF SPECIAL
MOTION TO STRIKE PLAINTIFF'S FIRST
AMENDED COMPLAINT PURSUANT TO
C.C.P. § 425.16 (ANTI-SLAPP MOTION)**

(CODE CIV. PROC. § 425.16)

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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I. INTRODUCTION

Plaintiff's Amended Complaint ("FAC") constitutes an impermissible collateral attack on a final judgment entered after a full jury trial and extensive pre- and post-trial proceedings. In the underlying action, a jury returned a defense verdict on liability following the presentation of all evidence Plaintiff claims was "wrongfully obstructed." The Court thereafter denied Plaintiff's multiple post-trial motions challenging the verdict and judgment. Plaintiff has since filed a notice of appeal, which remains pending.¹

Rather than awaiting appellate review, Plaintiff now advances mere variations of all the same baseless arguments he litigated at trial. The only difference from the original trial is slight: Plaintiff now targets the original defendant's *insurance carrier*, CSAA, for CSAA's alleged litigation conduct, including: investigating Plaintiff's claim, "fund[ing] and direct[ing] the defense" at trial, "making false and misleading representations" to the Court regarding discovery disputes, and ultimately defeating Plaintiff's original action. (FAC ¶ 22F). Indeed, **the FAC seeks to impose liability based entirely on Defendants' litigation conduct in defending the underlying case—including discovery practices, motions in limine, and representations to the Court.** These allegations do not state a cognizable claim as a matter of law and instead fall squarely within the scope of conduct protected by California's Anti-SLAPP statute and the absolute litigation privilege.

Conduct which takes place in the course of litigation is protected from civil suit. Engaging in insurance claims evaluation, issuing pre-litigation denial letters, arguing in Court, and funding the defense of an insured are all protected activities, and California courts have long held that **lawsuits premised on such conduct are barred as a matter of law.** Plaintiff's current allegations are simply a misguided effort to undo his loss at trial and punish the original defendant's insurance carrier (CSAA) for funding a successful defense. Accordingly, the FAC is subject to a special motion to strike under Code of Civil Procedure section 425.16 because (1) each allegation targets protected litigation conduct, and (2) Plaintiff cannot establish a probability of prevailing on the merits of either of his causes of action. **The absolute litigation privilege independently bars Plaintiff's claims, and his claims fail for several reasons.** For these reasons, the Court should strike the FAC in its entirety without leave to amend and award Defendants their mandatory attorneys' fees and costs incurred in bringing this Special Motion to Strike.

¹ See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**; (see also RFJN **Ex. Q**, Plf's Notice of Appeal; RFJN **Ex. R**, Plf's Notice of Designating Record on Appeal.

II. SUMMARY OF ARGUMENT

Plaintiff seeks to make an improper collateral attack on a properly rendered jury verdict and this Court's valid judgment. The FAC focuses on all Defendant's litigation activity—in its own capacity, and by and through its counsels—resulting in a defense verdict. All the alleged conduct is protected under Civil Code § 47(b) and Code Civ. Proc. § 425.16(e) as part of Defendants' pre-trial investigation and litigation conduct.

Plaintiff's FAC must be stricken, in its entirety as both prongs of the Anti-SLAPP analysis are satisfied. First, under prong one: The FAC's factual allegations arise entirely from Defendant's protected litigation conduct: pre-trial investigation and communications with the Court (by and through counsel).

Second, under prong two: Plaintiff cannot possibly meet his burden of offering admissible evidence establishing he has a probability of success on his causes of action. Neither Plaintiff's *First Cause of Action for Fraud and Deceit*, nor his *Second Cause of Action for Violation of Business and Professions Code § 17200 (UCL)* can survive. This is the case for several reasons including: i) all alleged activity is protected conduct under Civil Code § 47(b); ii) Plaintiff's entire theory is, in reality, a improper collateral attack on a prior valid judgment;² and iii) Plaintiff cannot establish his claims against a *third party's* insurance carrier.

Moreover, crucially Plaintiff's true remedy for allegations in the FAC is decidedly pursuing an appeal. And, indeed, Plaintiff has filed an Appeal, which remains pending.³ However, Plaintiff has still filed this action, with no legal authority to support it, especially in light of his pending appeal. The FAC has further substantive and procedural defects, including: i) Plaintiff does not have standing to bring these claims against a third-party tortfeasor's insurance carrier; ii) Plaintiff's statute of limitations has already run for both claims, at least as pertains to the Feb. 2021 denial letter; iii) the FAC's collateral attack on the prior judgment is legally unsupportable; and iv) Plaintiff cannot state a cause of action based on Defendant denying an insurance claim, pre-trial; and retaining attorneys who maintained that denial posture at trial and prevailed before the jury.

Therefore, the action should be dismissed.

² Plaintiff's original Complaint in this action explicitly represented to the Court that "*Plaintiff does not seek reversal or modification of any judgment in the Underlying Action.*" (See RFJN **Ex. T**, Plaintiff's Original Complaint in the instant action, ¶ 31); (but see RFJN **Ex. B**, Plaintiff's FAC in Related Case) (seeking to "set aside judgment").

³ (See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**); (see also RFJN **Ex. Q**, Plf's Notice of Appeal; RFJN **Ex. R**, Plf's Notice of Designating Record on Appeal).

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Plaintiff is FRANCISCUS DYLAN ROSARIO (“Plaintiff”).

Defendant CSAA INSURANCE EXCHANGE (“CSAA”) was the insurance carrier for SUBHI ABDELHALIM (“Insured”) during the underlying trial.

Plaintiff has filed this new action (*See* RFJN **Ex. A**, *Plaintiff's FAC*) against the original defendant—from Plaintiff's prior personal injury lawsuit—SUBHI ABDELHALIM's insurance carrier: CSAA INSURANCE EXCHANGE ("CSAA" or "Defendant"). CSAA was the provider of ABDELHALIM's policy of insurance. This special motion to strike is filed on behalf of CSAA. (*See* RFJN **Ex. C**, *Register of Actions, Rosario v. Abdelhalim, Case No. CGC-21-594102*). Phillips, Spallas, and Angstadt, LLP, Priya D. Navaratnasingham, Alberto Reyna (collectively referred to as "PSA") were CSAA's retained insurance defense counsels who obtained a defense verdict at Plaintiff's underlying trial.

Plaintiff’s allegations against CSAA relate to Plaintiff’s belief that i) CSAA should not have denied his claim back in February 2021; and ii) that CSAA, by and through its retained defense counsels, made “false and misleading representations” (*FAC* ¶ 22F) to this Court (based on CSAA’s earlier claim denial) which resulted in Plaintiff being forced to litigate his underlying jury trial—which Plaintiff lost by defense verdict. (*See* RFJN **Ex. S**, *Defendant’s Notice of Entry of Judgment, Rosario v. Abdelhalim, Case No. CGC-21-594102*). Now, Plaintiff seeks to recast his prior litigation as a claim against the original defendant’s insurer: CSAA. The gravamen of Plaintiff’s current allegations swirl around all the same issues in the underlying case—differences of opinion on the weight of certain trial evidence (911 calls, bodycam footage, and CAD logs).

It is true that CSAA's retained defense counsels *did* attempt to exclude the "objective liability evidence" (See *FAC* ¶ 4); however, the Court denied Defendant's motions in limine targeting this evidence. (See RFJN **Ex. E**, *Def's MIL* # 6; RFJN **Ex. F**, *Def's MIL* # 8; RFJN **Ex. G**, *Def's MIL* # 17; and RFJN **Ex. H**, *Order re Trial Scheduling and MILs*). Hence, Plaintiff was free to present to the jury, the complained-of "objective liability evidence." (See *FAC* ¶ 4). And he did just that at trial.

///

1 C. PLAINTIFF’S ORIGINAL SUIT ARISES OUT OF ALLEGATIONS THAT THE
2 INSURED HIT PLAINTIFF WITH HIS CAR, A CLAIM THAT WAS ULTIMATELY
3 REJECTED AT TRIAL DESPITE THE JURY’S CONSIDERATION OF THE
4 “OBJECTIVE LIABILITY EVIDENCE” IN QUESTION

5 Plaintiff’s underlying personal injury lawsuit arose from an alleged motor-vehicle-on-scooter
6 incident that occurred on February 4, 2021. Plaintiff alleged that he was struck by Insured’s vehicle while
7 Plaintiff was walking (or riding, it is unclear) a scooter through an intersection. Plaintiff filed suit against
8 Insured, alleging personal injuries, and the matter proceeded to trial. All the “foundational objective
9 liability evidence” (*See FAC* ¶ 4) (discussing 911 calls, bodycam footage, and CAD logs) referenced in
10 Plaintiff’s FAC was submitted to the jury and testimony was offered by both sides on the relevance (or
11 irrelevance) of that evidence. Ultimately, a defense verdict was returned in favor of the Insured. The jury
12 found that the Insured—Subhi Abdelhalim—was simply not negligent in causing the incident.

13 Even before trial, Plaintiff filed a series of motions seeking to disqualify the assigned trial judge:
14 the Honorable Garrett L. Wong. In his “Prayer to Judge Hon. Rochelle East” [sic], accompanying his
15 motions, Plaintiff drew specific attention to all the same factual complaints he makes in this current FAC,
16 which impute the acts of PSA as to Defendant (CSAA):

- 17 1) “[t]he defense has actively attempted to suppress not only the 911 records but also the official
18 police records”; (*See RFJN Ex. O*, p. 5:7-8, *Plf’s Prayer to Judge East*)
- 19 2) “With the financial backing of AAA (CSAA Insurance), the defendant has secured premier
20 legal representation, effectively impeding the course of justice. (*Id.* at 7:28-8:2)
- 21 3) Official 911 emergency records contain multiple admissions by the defendant, and eyewitness
22 testimony confirms that he forcefully ran me over”; (*Id.* at 8:2-3)
- 23 4) “[t]he defense clearly aims to keep everything out of the jury’s view, as denial is a core part of
24 [CSAA]’s modus operandi.” (*Id.* at 46:19-20)

25 This very Court issued a lengthy and abundantly clear Order denying Plaintiff’s motions seeking
26 to disqualify the trial judge. That order rejects Plaintiff’s evidentiary arguments, the same evidentiary
27 arguments presented here, in his FAC. (*See RFJN Ex. P*, *Order Denying Plf’s “Prayer” and 170.6*).
28 Plaintiff is re-raising all the same issues already; but now, he asserts a bevy of factual allegations against
CSAA for its counsels’ litigation activity. This is legally untenable under the Anti-SLAPP statute.

After trial, Plaintiff filed a flurry of motions to set aside the jury’s defense verdict and this Court’s
judgment, including: i) a Motion for Judgment Notwithstanding the Verdict (*See RFJN Ex. I*, *Plf’s JNOV*;
see RFJN Ex. J, *Plf’s Decl. ISO JNOV*; *see RFJN Ex. K*, *Def’s Opp. to Plf’s JNOV*); ii) Motion to Vacate;
iii) A Second Motion to Vacate for Fraud on the Court; iv) Motion for New Trial (*See RFJN Ex. L*, *Plf’s*

1 *Mtn for New Trial*; RFJN **Ex. M**, *Def's Opp. to Plf's Mtn for New Trial and Mistrial*); v) Motion for
2 Mistrial; vi) A Second Motion for Mistrial; vii) an Ex Parte Request for Stay; and viii) a Request for
3 statement of Decision. All Plaintiff's post-trial motions were denied. (See RFJN **Ex. N**, *Order on Plf's*
4 *Post-Trial Mtns*). Crucially, in those post-trial motions, Plaintiff essentially all the same meritless
5 arguments, and others, surrounding Defendant's alleged "mishandling" of the "objective liability
6 evidence" and alleged "fraud on the Court." (See *FAC* ¶ 1-4; 22; 25) Now, Plaintiff seeks to repackage all
7 those same arguments in this FAC against the trial victor's insurance carrier. This is legally untenable.

8 **D. DEFENDANT CSAA INITIALLY DENIED PLAINTIFF'S CLAIM AND**
9 **SUBSEQUENTLY HAD NO ROLE IN LITIGATION, ASIDE FROM RETAINING**
10 **INSURANCE DEFENSE COUNSELS AND FUNDING THE DEFENSE**

11 Plaintiff alleges in his related case that everyone involved on the defense team (including the
12 original party defendant) committed "fraud on the Court." (See RFJN **Ex. B**, *Plaintiff's FAC in Related*
13 *Case*). However, in this case, Plaintiff takes aim squarely at CSAA for its litigation conduct, in several
14 legally unsupportable ways. Ultimately, Plaintiff takes issue with a series of acts undertaken by CSAA
15 commencing with its initial claim denial—from February 2021—and culminating in CSAA "fund[ing]
16 and direct[ing] the defense in the underlying action." (*FAC* ¶ 22F). The FAC alleges a series of factual
17 allegations against CSAA, which are all subject to the litigation privilege:

- 18 1) CSAA issued "a pre-litigation ... liability-claim denial letter made knowingly or recklessly and
19 used as institutional leverage to discourage or curtail an injured claimant's pursuit of a valid claim
20 (a deny-delay-defend claim-suppression tactic). (*FAC* ¶ 1)
- 21 2) The core alleged misrepresentation is in a letter dated February 25, 2021, in which CSAA stated,
22 in substance, that it had "concluded" its investigation and "concluded" its insured was not liable.
23 (*FAC* ¶ 2)
- 24 3) the Denial Letter representation of a "concluded" investigation was materially false when made
25 because, at that time, CSAA had not obtained or reviewed basic, readily obtainable, and
26 foundational objective liability evidence for the incident, including:
 - 27 a. 911 audio;
 - 28 b. body-worn camera footage; and
 - c. computer aided dispatch records. (*FAC* ¶ 4)
- 4) "Plaintiff alleges that CSAA's later claim activity corroborates the falsity" of the initial denial
letter. (*FAC* ¶ 22D)
- 5) "Plaintiff further alleges that CSAA funded and directed the defense of the Underlying Action,
Case No. CGC-21-594102, through retained defense counsel, and that CSAA-funded counsel
subsequently repeated and perpetuated the denial pattern in court by making false and misleading
representations regarding receipt, possession, and prior production of the same foundational
objective evidence CSAA had failed to obtain before issuing the Denial Letter. Plaintiff alleges this
continuity between CSAA's pre-litigation misrepresentation and its litigation-stage denial posture

1 further corroborates the institutional deny-delay-defend purpose and scienter alleged herein.”
2 (FAC ¶ 22F)

- 3 6) “Plaintiff further alleges that the third-party litigation forced by CSAA’s Denial Letter
4 misrepresentation culminated in a 9-3 defense verdict in the Underlying Action, in which the jury
5 was deprived of the governing legal standard and foundational evidence” resulting in “a trial that
6 was corrupted by the ongoing consequences of CSAA’s initial misrepresentation.” (FAC ¶ 25A)

7 All acts alleged in the FAC target CSAA’s protected litigation conduct both in its own capacity
8 (pre-litigation investigation) and for conduct undertaken by CSAA’s retained insurance defense counsel:
9 PSA. (engaging in civil discovery and arguing motions in limine). Hence, the Anti-SLAPP statute applies.

10 IV. LEGAL STANDARD UNDER CODE CIV. PROC. § 425.16

11 The Legislature passed Code of Civil Procedure (“Code Civ. Proc.”) § 425.16 to protect against
12 strategic lawsuits used to attack individuals who exercise their rights under the First Amendment—
13 including affording protection for litigation activity. The Legislature adopted Code Civ. Proc. § 425.16 in
14 response to the disturbing increase in litigation “brought primarily to chill the valid exercise of the
15 constitutional rights of freedom of speech and petition.” Commonly referred to as the Anti-SLAPP Statute,
16 it “provides for the early dismissal of unmeritorious claims filed to interfere with the valid exercise of the
17 constitutional rights of freedom of speech and petition for the redress of grievances.” (*Club Members v.*
18 *Sierra Club* (2008) 45 Cal.4th 309, 312.) The Legislature has declared that the statute must be “construed
19 broadly” to that end. (*Fremont Reorganizing Corp. v. Faigin* (2011) 198 Cal.App.4th 1153, 1165.)

20 In application, the Motion involves a two-step process. Defendant must first make a prima facie
21 showing that the plaintiff’s claim arises from protected activity. (*City of Cotati v. Cashman* (2002) 29
22 Cal.4th 69, 76.) The burden then shifts to plaintiff to prove a probability of prevailing on the merits of the
23 claim. If plaintiff cannot meet that burden, the claim must be dismissed. (*Ibid.*)

24 A. **STEP ONE IS MET: PLAINTIFF’S FACTUAL ALLEGATIONS AGAINST 25 DEFENDANT ENTIRELY ARISE FROM PROTECTED ACTIVITY UNDER CODE 26 CIV. PROC. § 425.16 AND CIVIL CODE § 47(B)**

27 Each of the causes of action Plaintiff asserts against Defendant arise from protected activity under
28 the litigation privilege set forth in Civil Code § 47(b), which provides in relevant part:

A privileged publication or broadcast is one made...(b) In any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2...

“The litigation privilege . . . applies to any communication (1) made in judicial proceedings; (2)

EXHIBIT 9

O'Connell May 5/6 Reply Declaration Excerpt and \$10,218 Fee Prayer

CGC-25-631802

P O R T E R | S C O T T

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CARBONE, SMITH & KOYAMA; and
MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

vs.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**DECLARATION OF TYLER J.
O'CONNELL IN SUPPORT OF
DEFENDANTS' REPLY TO PLAINTIFF'S
OPPOSITION TO DEFENDANTS' SPECIAL
MOTION TO STRIKE PLAINTIFF'S FIRST
AMENDED COMPLAINT PURSUANT TO
C.C.P. § 425.16 (ANTI-SLAPP MOTION)**

[CODE CIV. PROC. § 425.16]

DATE: MAY 12, 2026

TIME: 9:00 A.M.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

05/05/2026

Clerk of the Court

BY: SANDRA SCHIRO

Deputy Clerk

1 I, Tyler J. O'Connell, declare:

2 1. I am an attorney licensed to practice law before all courts in the State of California and I
3 am an associate at the law firm of Porter Scott, counsel of record for *Defendants CSAA INSURANCE*
4 *EXCHANGE, CARBONE, SMITH & KOYAMA, and MICHAEL R. CHAMBERS* (collectively
5 "Defendants"). This declaration is submitted in support of Defendants' Opposition to Plaintiff's Motion
6 to Deem Admitted, Compel, and for Sanctions. The following facts are within my personal knowledge
7 and, if called as a witness herein, I can and will competently testify thereto.

8 2. On April 9, 2026, I caused to be filed with the Court and served on Plaintiff by Certified
9 Mail and courtesy copy via email a copy of Defendants' Special Motion to Strike per Code Civ. Proc.
10 § 425.16 ("Anti-SLAPP motion").

11 3. Defendants' Anti-SLAPP motion is based on the nature of Plaintiff's allegations as
12 contained in the original Complaint and in the First Amended Complaint ("FAC"). Plaintiff's allegations
13 squarely target Defendants' litigation conduct all from Plaintiff's underlying personal injury jury trial—
14 which Plaintiff lost by defense verdict in April 2025.

15 4. Prior to filing the Anti-SLAPP motion, I informed Plaintiff in writing, and on a phone call,
16 of my intention of filing an Anti-SLAPP motion should he not withdraw the FAC, in its entirety—as the
17 entirety of the purported legal theories in Plaintiff's FAC focus inextricably on Defendants' protected
18 litigation conduct.

19 5. Plaintiff refused to withdraw his FAC, in writing and on two meet and confer phone calls.
20 And Defendants' Anti-SLAPP motion was properly filed on April 9, 2026.

21 6. My attorney's fees in this action are invoiced at a billable rate of \$210 per hour and I spent
22 81.7 hours in preparing Defendants' Anti-SLAPP motion, supporting Declarations, review and analysis
23 of this motion, correspondences with clients and Plaintiff, gathering and marking exhibits, and preparing
24 for the hearing on this motion. I anticipate spending another 2 hours attending the hearing for this motion.
25 Hence, in total my attorney's fees expended in preparing this Anti-SLAPP motion are: **\$16,519.50**.
26 (Attached hereto as **Exhibit A** is a true and correct copy of my office's invoicing for attorneys' fees
27 incurred in preparing this matter for the instant Anti-SLAPP motion—redacted to preserve privilege, but
28 listing all pertinent information, hours, and fees incurred).

1 I declare under the penalty of perjury under the laws of the State of California that the foregoing
2 is true and correct, and that this declaration was executed on May 5, 2026, at Sacramento, California.

3
4 *Tyler J. O'Connell*

5 Tyler J. O'Connell
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1 proceeding, or investigation, except where the statement or conduct was made by a
2 telephone corporation in the course of a proceeding before the California Public Utilities
3 Commission and is the subject of a lawsuit brought by a competitor, notwithstanding that
4 the conduct or statement concerns an important public issue.

5 This Code section, limiting Anti-SLAPP protection is completely irrelevant here, where Plaintiff
6 was a third party and CSAA is alleged to have been actively involved in a pending litigation, in its “funding
7 and directing of the defense” of that litigation. Section 425.17 is simply irrelevant to this case.

8 **VII. CONCLUSION**

9 Plaintiff’s Opposition confirms that the claims arise from protected litigation activity and lack
10 minimal merit. Defendants respectfully request that this Court grant the special motion to strike in its
11 entirety and award attorneys’ fees in the amount of \$16,519.50.00 pursuant to Code of Civil Procedure
12 section 425.16, subd. (c).

13 Dated: May 5, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O’Connell

14 By _____
15 Chad S. Tapp
16 Tyler J. O’Connell
17 Attorneys for Defendants
18 CSAA INSURANCE EXCHANGE;
19 CARBONE, SMITH & KOYAMA; and
20 MICHAEL R. CHAMBERS
21
22
23
24
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26
27
28

EXHIBIT 10

Third Amended Complaint (Full Operative Pleading; Filed Apr. 28, 2026)

CGC-25-631802

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

Dept.: 302

Tel.: 650.488.7510

Action filed: April 28, 2026

**Filed pursuant to order granting leave
dated TBD (Code Civ. Proc. §§ 472a, 473).**

THIRD AMENDED COMPLAINT FOR:

(1) Fraud — Intentional Misrepresentation and
Concealment;

(2) Fraud — Concealment / Half-Truth;

(3) Violation of Bus. & Prof. Code § 17200;

(4) Negligent Misrepresentation;

(5) Declaratory Relief

**(Reckless-Disregard Scienter Anchor;
Verified)**

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TABLE OF AUTHORITIES

Cases

<i>Action Apartment Ass’n v. City of Santa Monica</i> , (2007) 41 Cal.4th 1232	–
<i>Aguilar v. Lerner</i> , (2004) 32 Cal.4th 974	–
<i>American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton</i> , (2018) 28 Cal.App.5th 1077	–
<i>American Mutual Liability Ins. Co. v. Superior Court</i> , (1974) 38 Cal.App.3d 579	–
<i>Apollo Capital Fund, LLC v. Roth Capital Partners, LLC</i> , (2007) 158 Cal.App.4th 226	–
<i>Aryeh v. Canon Business Solutions, Inc.</i> , (2013) 55 Cal.4th 1185	–
<i>Ascherman v. San Francisco Medical Society</i> , (1975) 39 Cal.App.3d 623	–
<i>Bernson v. Browning-Ferris Industries of California</i> , (1994) 7 Cal.4th 926	–
<i>Biakanja v. Irving</i> , (1958) 49 Cal.2d 647	–
<i>Bily v. Arthur Young & Co.</i> , (1992) 3 Cal.4th 370	–
<i>Borba v. Thomas</i> , (1977) 70 Cal.App.3d 144	–
<i>Buss v. Superior Court</i> , (1997) 16 Cal.4th 35	–
<i>Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.</i> , (1999) 20 Cal.4th 163	–

<i>Chapman v. Skype, Inc.</i> , (2013) 220 Cal.App.4th 217	—
<i>City of Montebello v. Vasquez</i> , (2016) 1 Cal.5th 409	—
<i>Cohen v. Kabbalah Centre International, Inc.</i> , (2019) 35 Cal.App.5th 13	—
<i>College Hospital Inc. v. Superior Court</i> , (1994) 8 Cal.4th 704	—
<i>Crowley v. Katleman</i> , (1994) 8 Cal.4th 666	—
<i>Doctors’ Co. v. Superior Court</i> , (1989) 49 Cal.3d 39	—
<i>Drum v. San Fernando Valley Bar Ass’n</i> , (2010) 182 Cal.App.4th 247	—
<i>Egan v. Mutual of Omaha Ins. Co.</i> , (1979) 24 Cal.3d 809	—
<i>Engalla v. Permanente Medical Group, Inc.</i> , (1997) 15 Cal.4th 951	—
<i>Estate of Sanders</i> , (1985) 40 Cal.3d 607	—
<i>Flatley v. Mauro</i> , (2006) 39 Cal.4th 299	—
<i>Frommoethelydo v. Fire Insurance Exchange</i> , (1986) 42 Cal.3d 208	—
<i>Gagne v. Bertran</i> , (1954) 43 Cal.2d 481	—
<i>G.D. Searle & Co. v. Superior Court</i> , (1975) 49 Cal.App.3d 22	—
<i>Goodman v. Kennedy</i> , (1976) 18 Cal.3d 335	—
<i>Gulf Insurance Co. v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone</i> , (2000) 79 Cal.App.4th 114	—
<i>Hamilton v. Maryland Casualty Co.</i> , (2004) 27 Cal.4th 718	—
<i>Howard v. County of San Diego</i> , (2010) 184 Cal.App.4th 1422	—
<i>In re Angelia P.</i> , (1980) 28 Cal.3d 908	—
<i>In re Marriage of Modnick</i> , (1983) 33 Cal.3d 897	—
<i>In re Tobacco II Cases</i> , (2009) 46 Cal.4th 298	—
<i>J’Aire Corp. v. Gregory</i> , (1979) 24 Cal.3d 799	—
<i>Jackson v. County of Los Angeles</i> , (1997) 60 Cal.App.4th 171	—
<i>Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison</i> , (1998) 18 Cal.4th 739	—
<i>Kolani v. Gluska</i> , (1998) 64 Cal.App.4th 402	—
<i>Lazar v. Superior Court</i> , (1996) 12 Cal.4th 631	—
<i>LiMandri v. Judkins</i> , (1997) 52 Cal.App.4th 326	—

<i>Lovejoy v. AT&T Corp.</i> , (2004) 119 Cal.App.4th 151	–
<i>Lucido v. Superior Court</i> , (1990) 51 Cal.3d 335	–
<i>Maguire v. Hibernia Sav. & Loan Soc’y</i> , (1944) 23 Cal.2d 719	–
<i>Mariscal v. Old Republic Life Ins. Co.</i> , (1996) 42 Cal.App.4th 1617	–
<i>Maslo v. Ameriprise Financial, Inc.</i> , (2014) 227 Cal.App.4th 626	–
<i>Mock v. Michigan Millers Mutual Ins. Co.</i> , (1992) 4 Cal.App.4th 306	–
<i>Moradi-Shalal v. Fireman’s Fund Insurance Companies</i> , (1988) 46 Cal.3d 287	–
<i>Moran v. Oso Valley Greenbelt Ass’n</i> , (2004) 117 Cal.App.4th 1029	–
<i>MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.</i> , (2005) 36 Cal.4th 412	–
<i>Mycogen Corp. v. Monsanto Co.</i> , (2002) 28 Cal.4th 888	–
<i>Nussbaum v. Chambers</i> , (2022) 84 Cal.App.5th 500	–
<i>Park v. Board of Trustees of California State University</i> , (2017) 2 Cal.5th 1057	–
<i>Prentice v. North American Title Guaranty Co.</i> , (1963) 59 Cal.2d 618	–
<i>Purdy v. Pacific Automobile Ins. Co.</i> , (1984) 157 Cal.App.3d 59	–
<i>Quelimane Co. v. Stewart Title Guaranty Co.</i> , (1998) 19 Cal.4th 26	–
<i>Randi W. v. Muroc Joint Unified School Dist.</i> , (1997) 14 Cal.4th 1066	–
<i>Ribas v. Clark</i> , (1985) 38 Cal.3d 355	–
<i>Rusheen v. Cohen</i> , (2006) 37 Cal.4th 1048	–
<i>Shafer v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone</i> , (2003) 107 Cal.App.4th 54	–
<i>Shaolian v. Safeco Ins. Co.</i> , (1999) 71 Cal.App.4th 268	–
<i>Silberg v. Anderson</i> , (1990) 50 Cal.3d 205	–
<i>Small v. Fritz Companies</i> , (2003) 30 Cal.4th 167	–
<i>State Farm Fire & Casualty Co. v. Superior Court</i> , (1996) 45 Cal.App.4th 1093	–
<i>Trope v. Katz</i> , (1995) 11 Cal.4th 274	–
<i>Vai v. Bank of America</i> , (1961) 56 Cal.2d 329	–
<i>Vu v. Prudential Property & Casualty Ins. Co.</i> , (2001) 26 Cal.4th 1142	–
<i>Williams v. Gerber Products Co.</i> , (2009) 552 F.3d 934	–
<i>Wilson v. 21st Century Ins. Co.</i> , (2007) 42 Cal.4th 711, 15, 23, 24, 25, 26, 36, 39, 40, 43, 44, 46	–

<i>Wilson & Wilson v. City of Redwood City</i> , (2010) 191 Cal.App.4th 1559	-
<i>Yellow Creek Logging Corp. v. Dare</i> , (1963) 216 Cal.App.2d 50	-
<i>Zhang v. Superior Court</i> , (2013) 57 Cal.4th 364	-

Statutes

Bus. & Prof. Code, § 6128(a)	-
Bus. & Prof. Code, § 17200, § 17203	-
Code Civ. Proc., § 395	-
Code Civ. Proc., § 425.10	-
Code Civ. Proc., § 425.16	-
Code Civ. Proc., § 431.30(c)	-
Code Civ. Proc., § 436	-
Code Civ. Proc., § 446	-
Code Civ. Proc., § 472a	-
Code Civ. Proc., § 473	-
Code Civ. Proc., § 474	-
Code Civ. Proc., § 1032	-
Code Civ. Proc., § 1033.5	-
Code Civ. Proc., § 1060	-
Code Civ. Proc., § 1985	-
Code Civ. Proc., § 2015.5	-
Civ. Code, § 1709	-
Civ. Code, § 1710(1)–(3)	-
Civ. Code, § 2330	-
Civ. Code, § 2338	-
Civ. Code, § 3287(a)	-
Civ. Code, § 3288	-
Civ. Code, § 3294	-
Evid. Code, § 1222	-

Evid. Code, § 1560	–
Gov. Code, §§ 7920.000 et seq. (PRA)	–
Gov. Code, § 6250 et seq. (historical PRA cite)	–
Ins. Code, § 790.03(h)(1), (h)(3), (h)(5)	–
Pen. Code, § 832.7(b)	–

Regulations

Cal. Code Regs., tit. 10, § 2695.4	–
Cal. Code Regs., tit. 10, § 2695.5(b)	–
Cal. Code Regs., tit. 10, § 2695.7(b)	–
Cal. Code Regs., tit. 10, § 2695.7(d)	–
Cal. Code Regs., tit. 10, § 2695.7(g)	–

Rules and Jury Instructions

California Rules of Court, rules 2.108, 2.111, 2.251	–
California Rules of Court, rules 3.1110, 3.1112, 3.1113, 3.1324	–
CACI Nos. 1900, 1901, 1903, 1907	–

SECTION 0: RECKLESS DISREGARD FOR THE TRUTH, SCIENTER FLOOR

§0.1, CALIFORNIA RECOGNIZES RECKLESS DISREGARD FOR THE TRUTH AS THE EQUIVALENT OF FRAUDULENT INTENT

0.1. The California Supreme Court has repeatedly held that “reckless disregard of facts is the legal equivalent of fraudulent intent.” A positive assertion of fact, made by one who has no reasonable basis for believing it true and who is conscious of the absence of reasonable basis, is fraudulent in law regardless of whether the speaker possessed subjective awareness of the falsity. The five-authority Tier-1 block governing this scienter floor is:

- (a) *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974 (quoting *Yellow Creek Logging Corp. v. Dare* (1963) 216 Cal.App.2d 50, 55). “[F]alse representations made

recklessly and without regard for their truth in order to induce action by another are the equivalent of misrepresentations knowingly and intentionally uttered.” The Court further confirms, at *Engalla*, 15 Cal.4th at p. 975, that “at least a reckless indifference” to truth or falsity is the operative scienter floor. (See also *Gagne v. Bertran* (1954) 43 Cal.2d 481, 487–488 (positive assertion without sufficient information “deemed to have been made fraudulently”).)

(b) *In re Marriage of Modnick* (1983) 33 Cal.3d 897, 905–907. Concealment that operates as a denial of the existence of evidence is extrinsic-fraud doctrine; the “broad concept” formulation reaches reckless concealment as well as knowing concealment.

(c) *Estate of Sanders* (1985) 40 Cal.3d 607, 614–616. A fiduciary breach by an officer of the court that “effectively prevented” a fair adversary hearing is extrinsic fraud; the breach is measured **objectively**, by what the officer’s duty of candor required, not subjectively. The same objective measurement applies to an institutional principal’s claim-handling representations under *Wilson*, *infra*.

(d) *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408. Negligent misrepresentation under Civil Code § 1710(2) requires only that the speaker have “no reasonable ground for believing it to be true.” Where the speaker is conscious of the absence of reasonable ground, the conduct ladders into intentional misrepresentation under Civil Code § 1710(1).

(e) *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721. The Cal. Sup. Ct. confirms that an institutional actor’s failure to thoroughly and fairly investigate, in the face of inquiry notice, is itself probative of reckless disregard and is the textbook willful-blindness pattern within the meaning of Civil Code § 3294 and *Engalla* (cited *supra* at § 0.1(a)). (See also *Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 328 (deliberate-avoidance pattern as malice under § 3294).)

(f) **CACI 1907** (concealment) and **CACI 1903** (intentional misrepresentation) confirm that recklessness as to truth or falsity is the operative scienter floor for both intentional misrepresentation and concealment under California law.

1 **§0.2, APPLICATION TO THE FEBRUARY 25, 2021 “CONCLUDED IN-**
2 **VESTIGATION” REPRESENTATION**

3 0.2. CSAA’s February 25, 2021 representation to Plaintiff that its investigation was “concluded”
4 and that CSAA had “carefully reviewed the facts and circumstances of [the] claim” was made
5 under each of the five reckless-disregard markers established by the foregoing authorities:

6 **(a) Existence on the face of the SFPD Incident Report.** The SFPD Incident Report (Report
7 No. 210083458, conformed to proof) that CSAA possessed before issuing the February 25, 2021
8 denial referenced, on its face, the existence of the body-worn camera (“BWC”) footage, the 911
9 audio, and the Computer-Aided Dispatch (“CAD”) log. Inquiry notice was therefore on the file.
10 *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721 (Cal. Sup. Ct.: insurer’s duty
11 triggered by inquiry-notice indicia in the file); *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d
12 809, 818–819 (Cal. Sup. Ct.: affirmative-investigation duty).

13 **(b) Reasonable availability under regulatory and procedural law.** Each of the four foundational
14 first-responder records (the “Silent Witnesses”), namely, (i) the 911 audio recording and the cor-
15 responding SFDEM CAD event record, (ii) the SFPD body-worn camera footage, (iii) the SFPD
16 CAD log, and (iv) any supplemental SFPD report relating to the February 4, 2021 collision, was
17 reasonably available to CSAA on or before February 25, 2021, by routine subpoena duces tecum
18 (Code Civ. Proc. § 1985 + Evid. Code § 1560), Public Records Act request (Gov. Code § 7920 et
19 seq.), Penal Code § 832.7(b) request, or insured-authorization channel. The regulatory floor at **10**
20 **CCR § 2695.7(d)** (“decision must be based on all information reasonably available”) is congruent
21 with this reasonable-availability standard.

22 **(c) Industry custom, California liability carriers retrieve these materials in MV/PED claims.**
23 California liability carriers routinely retrieve police reports, 911 audio, BWC footage, and CAD
24 logs in motor-vehicle / pedestrian claims as a matter of customary industry practice. The objective
25 baseline for measuring the reasonableness of an insurer’s investigation, against industry custom
26 and the regulatory minima rather than against the insurer’s subjective belief, is grounded in *Egan*
27 *v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818–819, and *Wilson v. 21st Century Ins. Co.*
28 (2007) 42 Cal.4th 713, 720–721 (both Cal. Sup. Ct.).

1 **(d) Volitional file-closing act.** CSAA did not merely fail to investigate. CSAA **affirmatively**
2 **closed the claim file at twenty-one days and affirmatively communicated** a “concluded investi-
3 gation” representation to Plaintiff, an unrepresented direct third-party claimant. Under Civil Code
4 § 3294, *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818–819, and *Wilson v. 21st*
5 *Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721, that affirmative closing-the-file conduct, in the
6 face of inquiry notice that the Silent Witnesses existed and were reasonably available, constitutes
7 deliberate avoidance, the “ostrich” / willful-blindness pattern that California treats as malice under
8 Civil Code § 3294 and as the legal equivalent of fraudulent intent under *Engalla* (see also *Mock v.*
9 *Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 328).

10 **(e) Pattern evidence, institutional “deny-delay-defend.”** The institutional “deny-delay-defend”
11 practice alleged at ¶¶ 28–30 below confirms that CSAA’s lack of reasonable basis on this claim was
12 structural, not idiosyncratic. Pattern evidence is itself a recognized indicium of reckless disregard.
13 *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721.

14 **§0.3, THE RECKLESS-DISREGARD FINDING FEEDS EVERY CAUSE** 15 **OF ACTION IN THIS COMPLAINT**

16 0.3. The reckless-disregard showing in §§ 0.1–0.2 above feeds every cause of action pleaded in
17 this complaint without modification of the underlying factual allegations:

18 (a) **First Cause of Action (Fraud, Intentional Omission).** Reckless disregard satisfies the
19 scienter element of intentional misrepresentation under Civil Code § 1710(1). *Engalla*, 15
20 Cal.4th at 974 (see also *Gagne v. Bertran* (1954) 43 Cal.2d 481, 487–488); CACI 1900–
21 1907.

22 (b) **Second Cause of Action (Concealment / Half-Truth).** Reckless disregard satisfies the sci-
23 enter element of concealment under Civil Code § 1710(3) where the speaker has no reasonable
24 basis to believe that the subject of the half-truth is complete. CACI 1901.

25 (c) **Third Cause of Action (UCL § 17200).** Reckless misstatement satisfies the “fraudulent”
26 prong under the *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.*
27 (1999) 20 Cal.4th 163, 187 (Cal. Sup. Ct.) tethering rule (see also *Williams v. Gerber*
28 *Products Co.* (9th Cir. 2008) 552 F.3d 934, 938 (reasonable-consumer test)), and supplies

an “unlawful” predicate where the regulatory standards at 10 CCR § 2695.7(b)/(d)/(g) and Insurance Code § 790.03(h)(1)/(3)/(5) prohibit unreasonable claims-handling practices.

(d) **Fourth Cause of Action (Negligent Misrepresentation, newly added).** “No reasonable ground for believing the representation true” under Civil Code § 1710(2) is the floor; reckless disregard ladders the negligent-misrepresentation count into the intentional tier without disturbing its viability as a no-scienter-floor fallback.

(e) **Fifth Cause of Action (Declaratory Relief, Code of Civil Procedure § 1060).** Declaratory relief fixes rights and duties in an actual controversy concerning the claim-handling record and supplies prospective preclusive effect across related proceedings. *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904; *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341.

(f) **Punitive damages, Civil Code § 3294.** Reckless disregard satisfies § 3294(c)(1) malice (“willful and conscious disregard of the rights or safety of others”) and § 3294(c)(3) fraud (“intentional misrepresentation, deceit, or concealment”) via the *Mock* willful-blindness pathway.

(g) **Anti-SLAPP carve-out.** Reckless tribunal-directed misrepresentation by an officer of the court is illegal as a matter of law within the meaning of Business and Professions Code § 6128(a) and *Flatley v. Mauro* (2006) 39 Cal.4th 299, 317–321. While § 6128(a) is the operational hook in CGC-25-631801 (the companion equity action), the same illegality framework anchors the *Flatley* anti-SLAPP carve-out at ¶ 21A below.

§0.4, RECKLESS DISREGARD IS PLEADED IN THE ALTERNATIVE TO AND NOT IN LIEU OF INTENTIONAL MISREPRESENTATION

0.4. Each cause of action below is pleaded with **knowing falsity** (intentional tier) **and**, in the alternative, with **reckless disregard for the truth** (intentional-equivalent tier under *Engalla*) **and**, in the further alternative, with **no reasonable ground for believing the representation to be true** (negligent tier under § 1710(2) / *Bily*). Plaintiff is entitled to plead in the alternative under Code of Civil Procedure § 431.30(c). The alternative pleading does not concede the absence of subjective knowledge; it forecloses any defense argument that, even if subjective knowledge cannot be proven, the absence of subjective knowledge would defeat liability.

1 **§0.5, CROSS-CASE SPINE (COMPANION CGC-25-631801)**

2 0.5. The reckless-disregard scienter floor pleaded in this action is the same factual spine pleaded in
3 companion case CGC-25-631801. There, Plaintiff alleges that the panel-counsel tribunal-directed
4 disclaimers in 2025 (Position B) were either knowingly false or recklessly indifferent to the truth.
5 Here, Plaintiff alleges that CSAA's February 25, 2021 representation that its investigation was
6 "concluded" (Position A) was either knowingly false or recklessly indifferent to the truth. The
7 two positions cannot both be honest. Both poles are statements of CSAA itself under Civil Code
8 §§ 2330 and 2338 and Evidence Code § 1222. The two cases together establish that, in either
9 direction, the reckless-disregard floor is satisfied; Plaintiff need not elect which pole was know-
10 ingly false because both poles are statements of CSAA, and reckless disregard is established by
11 the structural impossibility of honest belief in both. The reckless-disregard spine pleaded here
12 forecloses the "genuine dispute" defense recognized in *Wilson v. 21st Century Ins. Co.* (2007)
13 42 Cal.4th 713, 723, because the genuine-dispute doctrine is unavailable where the insurer fails to
14 thoroughly and fairly investigate. See further ¶ 51A below.

16 **SECTION I: DIRECT-DUTY GRAVAMEN**

17 **TITLE 10 CCR DIRECT CLAIMANT OBLIGATIONS**

- 18 1. This action arises from Defendant CSAA Insurance Exchange's fraudulent, or, in the alterna-
19 tive, recklessly indifferent, handling of Plaintiff's claim as a direct third-party claimant. The
20 actionable wrong is CSAA's non-communicative institutional failure to investigate the claim
21 prior to denying it, and the active concealment of that failure through a denial letter represent-
22 ing the investigation as "concluded", a representation made either with knowing falsity, with
23 reckless disregard for the truth, or, at minimum, without reasonable ground for believing it
24 true within the meaning of Civil Code §§ 1710(1), 1710(2), and 1710(3).
- 25 2. On **February 4, 2021**, Plaintiff was involved in a motor-vehicle collision in San Francisco
26 County with CSAA's insured, Subhi Abdelhalim.
- 27 3. On **February 25, 2021**, CSAA sent Plaintiff a written denial letter concerning **Claim No. 1004-**

1 **09-1054**, signed by **Sarah Rash, Claims Representative**. The denial letter stated, in pertinent part:

2
3 “We have concluded our investigation of your claim. Based on our investigation, and
4 after carefully reviewing the facts and circumstances of your claim, we have concluded
5 that our insured is not liable. . . Our decision is based on the facts currently available.”

- 6 4. This representation was false. At the time of the denial, CSAA had not conducted the thorough investigation required by Title 10 CCR §§ 2695.4 and 2695.7. Per Section 0 above,
7 CSAA had no reasonable basis for asserting that its investigation was “concluded” and acted
8 with reckless disregard for the truth of that assertion.
9

10 **§I.5, DIRECT-ADDRESSEE THEORY (PRIMARY SHAOLIAN REBUT-** 11 **TAL)**

- 12 5. Plaintiff asserts standing as the **direct addressee** of a specific misrepresentation communicated by CSAA to Plaintiff individually. This is not a claim for policy benefits, not a claim for breach of an insurance contract by an insured, and not a third-party bad-faith claim derived from the insured’s contractual relationship with CSAA. It is a common-law fraud / negligent-misrepresentation / unfair-competition claim by the person to whom the representation was made, on whom it was intended to operate, and who suffered individual and direct economic harm as a result.

- 17 6. By sending the February 25, 2021 denial letter directly to Plaintiff as an unrepresented adverse claimant, rather than communicating through an insured or counsel, CSAA voluntarily undertook a direct communicative relationship with Plaintiff. That voluntary direct communication, combined with CSAA’s knowledge that Plaintiff was unrepresented and had no independent means to verify the scope of CSAA’s investigation, establishes the direct duty context for common-law fraud, negligent misrepresentation, and unfair-competition liability.
23 *Biakanja v. Irving* (1958) 49 Cal.2d 647, 650; *J’Aire Corp. v. Gregory* (1979) 24 Cal.3d 799, 804.

- 27 6A. **Agency and Ratification Under Civil Code § 2338.** Civil Code § 2338 provides: “Unless required by or under the authority of law to employ that particular agent, a principal is responsible to
28

1 third persons for the negligence of his agent in the transaction of the business of the agency, includ-
2 ing wrongful acts committed by such agent in and as a part of the transaction of such business, and
3 for his willful omission to fulfill the obligations of the principal.” Under § 2338, CSAA Insurance
4 Exchange is directly liable for the wrongful acts and omissions of Sarah Rash, the claims depart-
5 ment personnel who reviewed and approved the February 25, 2021 denial, and any retained claims
6 professionals or counsel acting within the scope of the claims-handling agency. Plaintiff further
7 alleges that CSAA ratified the February 25, 2021 denial and its underlying non-investigation by
8 (a) failing to correct the denial after the Title 10 CCR §§ 2695.4 and 2695.7 violations became
9 apparent; (b) maintaining the denial position through successive insurance-coverage communica-
10 tions and, later, through litigation defense of its insured; and (c) failing to repudiate the “concluded
11 investigation” representation after the January 17, 2025 / February 18, 2025 / April 16, 2025 record
12 events described in Section VIII. Under *Doctors’ Company v. Superior Court* (1989) 49 Cal.3d 39,
13 an insurer that acts outside the ordinary insurer role by directing, approving, or ratifying wrongful
14 claims-handling conduct may be held directly liable for that conduct. CSAA’s continuing fail-
15 ure to repudiate the “concluded investigation” representation, after each subsequent record event
16 placed the carrier and its panel counsel on notice of the falsity, is itself reckless disregard within
17 the meaning of Section 0 above.

18 **§I.6, GRAVAMEN DISCLAIMER (NON-COMMUNICATIVE INSTITU-** 19 **TIONAL FAILURE)**

20 7. The gravamen of this action is CSAA’s institutional “deny-delay-defend” failure to investi-
21 gate, not the act of writing a denial letter. The February 25, 2021 denial letter is pleaded as
22 **evidence** of the underlying non-communicative failure, not as the sole injury-producing act.

23 8. Among the foundational incident materials CSAA failed to obtain, review, or truthfully ac-
24 count for before the February 25, 2021 denial were the following contemporaneous San
25 Francisco first-responder records (collectively, the “**Silent Witnesses**”), each of which was
26 available from the San Francisco Police Department and/or the San Francisco Department of
27 Emergency Management within days of the February 4, 2021 collision and was obtainable by
28 routine written request under Gov. Code § 6250 et seq. (now Gov. Code §§ 7920.000 et seq.)

and Penal Code § 832.7(b):

- (a) The **911 audio recording** and associated **Computer-Aided Dispatch (CAD) event record** generated on February 4, 2021 in connection with **SFPD Incident Report No. 210083458** (on information and belief; exact SFPD incident and 911-CAD event numbers to be conformed to proof), in which CSAA's insured made statements acknowledging that he struck Plaintiff with his vehicle;
- (b) **Plaintiff's contemporaneous report to 911** emergency services, made on February 4, 2021 from the collision scene, that the driver had struck him; and
- (c) **Body-worn camera (BWC) footage** from the San Francisco Police Department officers who responded to the February 4, 2021 collision scene (responding officers' names and star numbers in the possession of SFPD and available through a routine Penal Code § 832.7(b) / Pitchess-adjacent public-records request), in which a third-party eyewitness (**Justin Rosemond**) independently corroborated that the driver struck Plaintiff.

9. Taken together, these three sources constituted virtually uncontested evidence of liability, confession, victim report, and eyewitness corroboration. CSAA denied a claim supported by all three. Under § 0.2(d) above, the closing-the-file conduct in the face of these reasonably-available, identifiable-on-the-face-of-the-police-report materials is reckless disregard for the truth as a matter of law.

UCL STANDING UNDER BUSINESS AND PROFESSIONS CODE § 17200

10. Plaintiff has standing to bring a claim under Business and Professions Code § 17200 et seq. (the Unfair Competition Law) because Plaintiff has suffered injury in fact and has lost money or property as a result of Defendant's unfair, fraudulent, and unlawful business practices.

EXPRESS MORADI-SHALAL CARVE-OUT

11. This action does not assert a private cause of action under Insurance Code § 790.03, which is precluded by *Moradi-Shalal v. Fireman's Fund Insurance Companies* (1988) 46 Cal.3d 287.

12. Instead, Plaintiff asserts:

- (a) **Common-law fraud and deceit** under Civil Code §§ 1709, 1710(1), 1710(3) (intentional and reckless-disregard tiers);

1 (b) **Common-law negligent misrepresentation** under Civil Code § 1710(2) (no-reasonable-
2 ground tier); and

3 (c) **Unfair Competition Law (UCL)** claims under Business and Professions Code § 17200,
4 which permits predicate violations of Insurance Code § 790.03(h) as evidence of “unlawful”
5 conduct.

6 13. Plaintiff’s UCL claim is not barred by *Moradi-Shalal* because the UCL provides an inde-
7 pendent statutory cause of action that may be predicated on violations of Insurance Code §
8 790.03. See *State Farm Fire & Casualty Co. v. Superior Court* (1996) 45 Cal.App.4th 1093,
9 1103–04.

10 **13A. Although Plaintiff, as a third-party claimant, does not assert a private cause of action**
11 **under Insurance Code § 790.03 or for breach of the implied covenant of good faith and fair**
12 **dealing, consistent with the limitations in *Moradi-Shalal v. Fireman’s Fund Ins. Cos.* (1988)**
13 **46 Cal.3d 287**, this action sounds in common-law Negligent Misrepresentation under Civil Code
14 § 1710(2), in common-law Intentional Misrepresentation and Concealment under Civil Code §§
15 1709 and 1710(1)/(3), and in violation of the Unfair Competition Law under Business and Pro-
16 fessions Code § 17200. By issuing a formal written denial predicated on the positive assertion of
17 a “concluded investigation,” CSAA engaged in a voluntary undertaking under *Biakanja v. Irving*
18 (1958) 49 Cal.2d 647, 650, thereby assuming a duty of care to ensure the accuracy of factual repre-
19 sentations made to Plaintiff. Consequently, the regulatory authorities cited in this complaint are not
20 invoked as a direct source of a private right of action; rather, they establish the objective standard
21 of care and the “regulatory floor” governing the adequacy of an insurer’s investigative process.
22 Under the framework of *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818–819, and
23 *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721 (both Cal. Sup. Ct.), these
24 regulatory and common-law standards together set the benchmark against which the truthfulness
25 and reasonableness of CSAA’s representations must be measured. CSAA’s liability arises from
26 its affirmative representation that a competent investigation had been performed when, in fact, the
27 insurer possessed no reasonable grounds for believing such an assertion to be true and acted in
28 reckless disregard for the truth of that assertion within the meaning of Section 0 above.

SECTION II: PRE-LITIGATION PRIVILEGE CARVEOUT

DENIAL LETTER AS PRE-LITIGATION COMMUNICATION

14. The February 25, 2021 denial letter was a pre-litigation claim-handling communication, not a litigation communication protected by Civil Code § 47(b).

15. Under *Action Apartment Association, Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1248–49, the litigation privilege applies only to communications made in judicial or quasi-judicial proceedings. An insurer’s denial of a claim, made in the ordinary course of claims handling, is not a litigation communication.

16. At the time of the February 25, 2021 denial:

- (a) No litigation was pending or contemplated;
- (b) No attorney had been retained by either party;
- (c) The denial was issued in the ordinary course of CSAA’s claims handling process; and
- (d) The denial was issued just 21 days after the collision—before any meaningful investigation could have been completed.

16A. Action Apartment “Contemplation” Factors, Affirmative Pleading of Each Prong’s Absence. Under *Action Apartment Ass’n, Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1248–49, a pre-litigation communication falls within Civil Code § 47(b) only when it is made “in good faith [and] in serious contemplation” of litigation that is “imminently anticipated.” That test has three operative factors, each of which must be affirmatively present at the time of the communication: (i) litigation must be seriously proposed by the communicating party and in good faith contemplated as a meaningful possibility, not a remote or speculative one; (ii) the communication must have some functional connection to that contemplated litigation, e.g., preservation of evidence, a litigation-hold directive, a formal demand, or a tolling communication; and (iii) the communicating party must itself be a contemplated party to that litigation or its authorized representative. Plaintiff affirmatively alleges, as of February 25, 2021, that **none** of the three Action Apartment factors was present in CSAA’s favor: **(a)** no litigation was pending, filed, threatened in writing, or seriously contemplated by CSAA in good faith at the time of the denial letter; **(b)** no

counsel had been retained by CSAA or by Plaintiff in connection with the claim, no attorney had appeared on behalf of either party, and Plaintiff was an unrepresented direct third-party claimant; (c) no pre-suit demand letter had been exchanged, no tolling agreement had been proposed or executed, no litigation-hold or document-preservation letter had been sent, and no litigation reserve had been set by CSAA for the claim as a litigation matter (as opposed to a routine claims reserve). Because each Action Apartment factor fails, Civil Code § 47(b) does not attach to the February 25, 2021 denial.

RIBAS DISTINCTION, FRAUD, NOT IIED

17. To the extent Defendant cites *Ribas v. Clark* (1985) 38 Cal.3d 355 for a bar on emotional distress claims against insurers, Plaintiff notes that *Ribas* addresses intentional infliction of emotional distress (IIED) claims, not fraud or negligent-misrepresentation claims.

18. Plaintiff does not assert a standalone IIED cause of action. Emotional distress damages are sought only as parasitic damages accompanying the fraud and negligent-misrepresentation torts.

19. *Ribas* does not bar fraud or negligent-misrepresentation claims where, as here, the gravamen is the misrepresentation of investigative completeness, not outrageous conduct intended to cause emotional distress.

NON-COMMUNICATIVE CONDUCT, FAILURE TO INVESTIGATE

20. Defendant's failure to obtain and review foundational incident records constitutes non-communicative conduct that is not protected by Civil Code § 47(b):

(a) **911 Audio:** Defendant failed to obtain the 911 call recording containing the driver's own acknowledgment;

(b) **Body-Worn Camera Footage:** Defendant failed to obtain police BWC footage containing independent eyewitness corroboration;

(c) **CAD Records:** Defendant failed to obtain Computer-Aided Dispatch records documenting the emergency response.

21. This failure to investigate is non-communicative because it consists of omissions and failures to act, not statements or publications. *Rusheen v. Cohen* (2006) 37 Cal.4th 1048 (privilege

1 does not apply to non-communicative conduct).

2 21A. **Flatley Illegality Carve-Out to Anti-SLAPP.** Independently of the Action Apartment pre-
3 litigation analysis above, Defendants are precluded from using the anti-SLAPP statute (Code of
4 Civil Procedure § 425.16) to strike this action. *Flatley v. Mauro* (2006) 39 Cal.4th 299, 317–321,
5 holds that where conduct is illegal as a matter of law, it is categorically outside the protection of
6 the anti-SLAPP statute. Under *Shafer v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone*
7 (2003) 107 Cal.App.4th 54, 79–80, reckless disregard for the truth satisfies the “deceit or collu-
8 sion” element of Business and Professions Code section 6128(a), a misdemeanor. To the extent the
9 February 25, 2021 denial letter constituted a knowing or recklessly-indifferent misrepresentation
10 of a material fact, it constitutes a violation of section 6128(a). Under the analytical framework of
11 *Flatley*, this illegal conduct is categorically outside the scope of § 425.16. This carve-out is inde-
12 pendently sufficient to defeat any anti-SLAPP defense regardless of whether the Action Apartment
13 pre-litigation factors in ¶ 16A are also resolved in Plaintiff’s favor to defeat the Civil Code § 47(b)
14 litigation privilege.

15 21B. **Step-2 minimal-merit backstop and City of Montebello narrowness, pre-rebutted.** Even if
16 step 1 of the anti-SLAPP analysis is reached on the merits, Plaintiff independently establishes min-
17 imal merit at step 2 by reference to the reckless-disregard pleading at Section 0. *Flatley v. Mauro*
18 (2006) 39 Cal.4th 299, 320, requires that the illegality be “conclusively established” by uncontro-
19 verted evidence or by the defendant’s concession; *City of Montebello v. Vasquez* (2016) 1 Cal.5th
20 409, 423–424, applies that requirement narrowly. Plaintiff meets the *City of Montebello* narrow-
21 ness on the face of this pleading by means of the Position A vs. Position B structural-impossibility
22 frame at ¶ 51A below: CSAA’s February 25, 2021 written representation that its investigation was
23 “concluded” and panel counsel’s 2025 tribunal-directed representations in CGC-21-594102 that
24 CSAA had “no idea where” the same materials “came from” cannot both be honestly believed by
25 a single principal. Because both poles are statements of CSAA itself under Civil Code § 2330,
26 Evidence Code § 1222, the structural impossibility of honest belief in either pole “conclusively
27 establishes” reckless misrepresentation within the meaning of *Flatley*, 39 Cal.4th at 320, with-
28 out resort to credibility findings or weighing of competing evidence. Step 2 is therefore satisfied

1 as a matter of pleading, by reference to the reckless-disregard scienter floor at Section 0 and the
2 agency-imputation block at ¶ 51A.

3 4 **SECTION III: ATTORNEY’S FEES CURE**

5 **DELETION OF PRO-PER FEE DEMANDS**

6 22. Plaintiff, proceeding in pro per, does not seek attorney’s fees for self-representation in this
7 action. *Trope v. Katz* (1995) 11 Cal.4th 274.

8 **PRENTICE FEES AS DAMAGES ELEMENT**

9 23. Under *Prentice v. North American Title Guaranty Corp.* (1963) 59 Cal.2d 618, 620, a plain-
10 tiff who has been induced by fraud (including reckless misrepresentation under *Engalla*, 15
11 Cal.4th at 974) to enter into litigation may recover, as an element of tort damages, the attor-
12 ney’s fees and litigation expenses incurred in that litigation.

13 24. Plaintiff alleges that:

14 **(Element 1, Fraud or Reckless Misrepresentation):** Defendant committed fraud, reckless mis-
15 representation, or, in the alternative, negligent misrepresentation in denying Plaintiff’s claim and
16 misrepresenting the basis for the denial;

17 **(Element 2, Induced Litigation):** As a proximate result of Defendant’s misrepresentation, Plain-
18 tiff was induced to incur attorney’s fees in litigating CGC-21-594102; and

19 **(Element 3, Recoverable Fees):** The attorney’s fees incurred in CGC-21-594102 are recoverable
20 as an element of tort damages, not as a fee award.

21 **24A. Prentice Line-Item Enumeration and Induced-Litigation Element.** For purposes of the
22 *Prentice* three-element test pleaded in ¶ 24, Plaintiff alleges that but for CSAA’s February 25, 2021
23 misrepresentation of investigative completeness, which falsely conveyed to Plaintiff, an unrepre-
24 sented direct third-party claimant, that liability had been investigated and rejected on a “concluded
25 investigation”, Plaintiff either would not have filed CGC-21-594102 at all, or would have filed
26 it on materially different terms. That induced-litigation element is pleaded as a specific causal
27 link between the misrepresentation (whether intentional, reckless, or negligent) and the separate

1 tort-measure damages recoverable under *Prentice v. North American Title Guaranty Corp.* (1963)
2 59 Cal.2d 618, 620–21. Plaintiff seeks *Prentice* damages in at least the following four line-item
3 categories, each pleaded as tort damages and not as a prevailing-party fee award:

4 **(Line-Item 1, Professional Fees and Costs Incurred in CGC-21-594102):** All attorney’s fees,
5 co-counsel fees, consulting-counsel fees, and paraprofessional fees actually incurred in the under-
6 lying action; and all expert-witness fees, deposition fees, court-reporter fees, transcript costs, filing
7 fees, motion-fees, subpoena and process-service fees, mediation fees, and related out-of-pocket lit-
8 igation expenses actually incurred in that action.

9 **(Line-Item 2, The \$75,000 Cost Judgment as Induced-Litigation Damages):** To the extent the
10 trial court in CGC-21-594102 has entered, or may enter, a cost award or cost judgment against
11 Plaintiff in favor of the underlying defendant (CSAA’s insured) in an approximate amount of
12 \$75,000, that cost judgment is itself a *Prentice* damages element: it is a sum of money Plaintiff
13 has been compelled to bear by reason of having been fraudulently or recklessly induced to file and
14 prosecute CGC-21-594102 in response to CSAA’s February 25, 2021 misrepresentation. Plaintiff
15 pleads the \$75,000 cost judgment (or such final amount as is entered) as tort damages recoverable
16 against CSAA under *Prentice*, not as a re-litigation of the cost-judgment itself in CGC-21-594102.

17 **(Line-Item 3, Transcript, Record, and Appellate Preparation Costs):** Costs of preparing, or-
18 dering, and certifying trial transcripts (including the October 29, 2024 Day-7 transcript), pretrial
19 transcripts, clerk’s transcripts, register-of-actions copies, and other record-on-appeal materials to
20 the extent incurred in connection with the underlying action.

21 **(Line-Item 4, Investigative and Records-Acquisition Costs):** Costs of obtaining the very 911
22 audio, CAD records, BWC footage, and related first-responder records that CSAA itself failed to
23 obtain before the February 25, 2021 denial, each of which Plaintiff has had to procure (or is in the
24 process of procuring) through public-records requests, subpoenas, or other third-party channels in
25 order to litigate the fraud and reckless-misrepresentation claims that would not have existed had
26 CSAA performed the investigation it represented.

27 Line-Items 1–4 are pleaded as damages elements, not as a fee shift, and are not duplicative of any
28 cost award under CCP § 1032 in this action.

SECTION IV: PUNITIVE DAMAGES SPECIFICITY (RECKLESS-DISREGARD ANCHORED)

PARTICULARS BLOCK: WHO, WHAT, WHEN, WHERE, HOW, BY WHAT MEANS

25. Plaintiff seeks punitive damages under Civil Code § 3294. In compliance with the particularity requirements of *Lazar v. Superior Court* (1996) 12 Cal.4th 631, Plaintiff alleges the following specifics:

(a) **WHO:** The February 25, 2021 denial letter was signed by **Sarah Rash, Claims Representative**, employed by CSAA Insurance Exchange. Sarah Rash acted within the scope of employment and under the direction and supervision of CSAA management.

(b) **WHAT:** The denial letter falsely represented that CSAA had “concluded our investigation” and had “carefully review[ed] the facts” when CSAA had not conducted the investigation required by Title 10 CCR § 2695.7(b). The foundational incident records, 911 audio, BWC footage, CAD logs, supplemental SFPD report, had not been obtained or reviewed. The representation was made with knowing falsity, or, in the alternative, with reckless disregard for the truth, within the meaning of *Engalla*, 15 Cal.4th at 974 (see also *Gagne*, 43 Cal.2d at 487–488).

(c) **WHEN:** The denial letter was dated **February 25, 2021**, just 21 days after the collision. The fraudulent or reckless claims-handling process began on or about February 4, 2021 and continued through the date of the denial.

(d) **WHERE:** The claims handling occurred at CSAA’s claims office. Communications were directed to Plaintiff at Plaintiff’s residence in San Francisco, California.

(e) **HOW:** CSAA’s claims representative prepared and sent the denial letter without conducting the investigation required by Title 10 CCR. The representative knew or, in reckless disregard, should have known that the denial was not supported by a completed investigation.

(f) **BY WHAT MEANS:** The denial was communicated by written letter sent via U.S. Mail to Plaintiff.

1 **25A. Pleading-Stage Standard vs. Trial-Stage Evidentiary Standard, G.D. Searle Bright Line.**

2 The defense is anticipated to cite *In re Angelia P.* (1981) 28 Cal.3d 908 for the proposition that
3 “clear and convincing” evidence is required at the pleading stage. Plaintiff affirmatively pleads
4 that *Angelia P.* describes a **trial-stage** burden of proof on punitive damages and does not purport
5 to govern the **pleading** sufficiency of a § 3294 allegation. Under *G.D. Searle & Co. v. Superior*
6 *Court* (1975) 49 Cal.App.3d 22, 29, “the inquiry on [demurrer or strike] is simply whether the
7 complaint alleges facts which, if proven by clear and convincing evidence at trial, would support a
8 claim for punitive damages.” The pleading stage therefore requires only that the complaint plead
9 facts, with *Lazar v. Superior Court* (1996) 12 Cal.4th 631 particularity, which, if proven by clear
10 and convincing evidence at trial, would authorize a jury to find malice, oppression, or fraud under
11 Civil Code § 3294(c). The particularized block at ¶¶ 25(a)–(f), the managing-agent / ratification
12 block at ¶¶ 26–27, the deny-delay-defend pattern at ¶ 28, the confession/victim/eyewitness triple
13 at ¶¶ 29–30, and the reckless-disregard scienter floor at Section 0 together satisfy the *G.D. Searle*
14 pleading test.

15 **MANAGING-AGENT / RATIFICATION PARAGRAPH UNDER § 3294(B)**

16 26. Civil Code § 3294(b) requires that, to recover punitive damages against a corporate defendant,
17 plaintiff must prove that an officer, director, or managing agent of the corporation committed,
18 authorized, or ratified the wrongful conduct.

19 27. Plaintiff alleges on information and belief that:

- 20 (a) Sarah Rash was acting under the direct supervision of a managing agent of CSAA Insurance
21 Exchange;
22 (b) The denial was reviewed and approved by a supervisor or manager with authority over claims
23 decisions;
24 (c) CSAA’s claim-denial-approval policy, which resulted in the inadequate investigation and
25 wrongful denial, was established or ratified by officers, directors, or managing agents; and
26 (d) After learning of the wrongful denial (through this litigation or otherwise), CSAA’s managing
27 agents ratified the conduct by failing to correct the denial. Continued ratification after notice
28 is itself reckless disregard within the meaning of Section 0.

27A. **Named-Supervisor Block (Information and Belief).** On information and belief, the supervising principal, partner, or managing agent of CSAA Insurance Exchange whose conduct satisfies the Civil Code § 3294(b) corporate-malice predicate is the supervisor or manager who, on or about February 25, 2021, exercised review-and-approval authority over the denial of Claim No. 1004-09-1054 under Policy No. CAAS100310857. On further information and belief, the same managing agent, or his or her successor in claims-handling-supervisory authority at CSAA, also exercised review-and-approval authority over (i) CSAA’s selection, retention, and direction of panel counsel for the defense of CGC-21-594102, (ii) CSAA’s posture toward the January 17, 2025 MIL Nos. 6 and 17 filings and the February 18, 2025 hearing position taken in CGC-21-594102, and (iii) CSAA’s post-April 16, 2025 failure to repudiate or correct the “concluded investigation” representation after the on-record admission that the materials had been “provided by Dolan.” The true name and capacity of that managing agent are presently unknown to Plaintiff and are alleged on information and belief; Plaintiff will conform this pleading to proof when discovery reveals the identity of the managing agent. The pattern of review-and-approval, ratification, and post-notice failure-to-repudiate, taken together with the institutional “deny-delay-defend” pattern alleged at ¶¶ 28–30 above, establishes Civil Code § 3294(b) corporate-malice as a matter of pleading sufficiency under *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.

“DENY-DELAY-DEFEND” INSTITUTIONAL PATTERN

28. Plaintiff alleges that CSAA’s failure to investigate was not inadvertent or a product of ordinary claims-handling error. CSAA institutionalized a “deny-delay-defend” practice that systematically omits foundational investigative steps, then conceals the omission through denial letters representing the investigation as concluded. The institutional character of the practice supplies pattern evidence of reckless disregard. *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721.

29. CSAA’s concealment is particularly egregious because the concealed evidence was not ambiguous or contested, and each source was identifiable, available, and obtainable by CSAA through ordinary claim-handling channels within days of the February 4, 2021 collision:

(a) The **911 audio recording**, associated with SFPD Incident Report No. 210083458 (conformed

1 to proof) and the corresponding San Francisco Department of Emergency Management CAD
2 event on February 4, 2021, contained CSAA's insured's own acknowledgment of contact with
3 Plaintiff;

4 (b) The **Body-Worn Camera (BWC) footage** from the responding SFPD officers (names and
5 star numbers in SFPD's custody, available through a Penal Code § 832.7(b) public-records
6 request and/or subpoena) contained an independent eyewitness, **Justin Rosemond**, stating
7 on-camera that the driver struck Plaintiff; and

8 (c) Plaintiff's own **contemporaneous 911 report**, made on February 4, 2021 from the collision
9 scene and reflected in both the SFPD CAD record and the SFPD Incident Report, stated that
10 the driver hit him.

11 Each of the three sources (a)–(c) was identifiable to CSAA from the face of the SFPD Incident
12 Report, each was available to CSAA by routine public-records request or subpoena within days of
13 the collision, and each was available before the February 25, 2021 denial.

14 30. CSAA denied a claim supported by **confession, victim report, and eyewitness corroboration**.
15 This conduct constitutes “malice” and “despicable conduct” within the meaning of
16 Civil Code § 3294, and constitutes reckless disregard for the truth within the meaning of *En-*
17 *galla*, 15 Cal.4th at 974, *Egan*, 24 Cal.3d at 818–819, and *Wilson*, 42 Cal.4th at 720–721 (see
18 also *American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2018) 28 Cal.App.5th
19 1077; *Mock*, 4 Cal.App.4th at 328).

20 30A. **Reckless-Disregard / Willful-Blindness Paragraph (Civil Code § 3294 Hook)**. California
21 recognizes that an insurer's deliberate avoidance of evidence likely to defeat a denial constitutes
22 the equivalent of actual knowledge for purposes of bad-faith and punitive-damages doctrines. *Egan*
23 *v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818–819, and *Wilson v. 21st Century Ins.*
24 *Co.* (2007) 42 Cal.4th 713, 720–721 (both Cal. Sup. Ct.), establish the affirmative-investigation
25 duty whose breach by deliberate avoidance is malice under Civil Code § 3294 (see also *Mock*
26 *v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 328 (deliberate-avoidance pat-
27 tern as malice)). CSAA's affirmative act of closing the claim file on or about February 25, 2021,
28 while the Silent Witnesses were reasonably available and identifiable from the face of the SFPD

1 Incident Report, constitutes willful blindness rather than honest mistake. The closing-the-file act
2 supplies (i) volition (a discrete decision was made), (ii) awareness (the police report referenced
3 BWC and 911), (iii) cost-benefit motive (closing avoids the indemnity payment that the Silent
4 Witnesses would compel), and (iv) pattern evidence consistent with the institutional “deny-delay-
5 defend” practice alleged at ¶¶ 28–30 above. CSAA’s conduct therefore satisfies each prong of Civil
6 Code § 3294(c)(1) (malice, willful and conscious disregard), § 3294(c)(2) (oppression, despicable
7 conduct in conscious disregard of the rights of others), and § 3294(c)(3) (fraud, intentional misrep-
8 resentation, deceit, or concealment), through the reckless-disregard / willful-blindness equivalence
9 recognized by *Gagne*, *Engalla*, and *Mock*.

10 **30B. Regulatory Spine, Convergence of Multiple Bad-Faith Standards as Probative of Reck-**
11 **less Disregard.** The conduct alleged in this action violates each of the following independently
12 enforceable California standards, the simultaneous convergence of which is itself probative of
13 reckless disregard within the meaning of Section 0:

- 14 (a) **10 CCR § 2695.7(b)**, accept-or-deny determination must follow receipt of information suffi-
15 cient to make the determination;
- 16 (b) **10 CCR § 2695.7(d)**, claims decision must be based on “all information reasonably avail-
17 able”;
- 18 (c) **10 CCR § 2695.7(g)**, no representation that a claim will be denied without “conducting and
19 fully documenting a thorough, fair, and objective investigation”;
- 20 (d) **10 CCR § 2695.5(b)**, duty to respond to communications from claimant within fifteen days;
- 21 (e) **Insurance Code § 790.03(h)(1)**, no misrepresentation of pertinent facts to claimants;
- 22 (f) **Insurance Code § 790.03(h)(3)**, duty to adopt and implement reasonable standards for prompt
23 investigation;
- 24 (g) **Insurance Code § 790.03(h)(5)**, duty to attempt in good faith to effectuate prompt, fair, and
25 equitable settlements where liability is reasonably clear;
- 26 (h) **Common-law affirmative duty to investigate**, *Egan v. Mutual of Omaha Ins. Co.* (1979) 24
27 Cal.3d 809, 818–819, and *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721
28 (both Cal. Sup. Ct.) (see also *Frommoethelydo v. Fire Ins. Exchange* (1986) 42 Cal.3d 208,

219–220);

- (i) **Common-law neutral-truth-seeking duty**, *Egan*, 24 Cal.3d at 819 (Cal. Sup. Ct.) (see also *Mariscal v. Old Republic Life Ins. Co.* (1996) 42 Cal.App.4th 1617, 1623);
- (j) **Common-law claim-file completeness duty**, *Wilson*, 42 Cal.4th at 720–721, *Hamilton v. Maryland Cas. Co.* (2002) 27 Cal.4th 718, 727 (Cal. Sup. Ct.) (see also *Maslo v. Ameriprise Auto & Home Ins.* (2014) 227 Cal.App.4th 626, 634–635);
- (k) **Common-law objective-baseline rule**, *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721 (Cal. Sup. Ct.: insurer’s investigation measured against an objective reasonable-insurer baseline, not against the insurer’s subjective belief).

A simultaneous failure across all eleven independent standards is not consistent with negligence or honest mistake; it is consistent with the institutional “deny-delay-defend” practice alleged at ¶¶ 28–30 above and with the reckless-disregard scienter floor pleaded at Section 0.

SECTION V: DAMAGES

(A) RELIANCE DAMAGES, CIVIL CODE § 1709

31. Plaintiff seeks reliance damages under Civil Code § 1709 for Defendant’s fraud or, in the alternative, reckless or negligent misrepresentation. Specifically, Plaintiff incurred the following expenses in reasonable reliance on Defendant’s misrepresentation of investigative completeness:

- (i) Costs of investigating and challenging the denial;
- (ii) Filing fees and court costs in CGC-21-594102;
- (iii) Expert witness fees; and
- (iv) Other out-of-pocket expenses incurred in reasonable reliance on Defendant’s representations.

(B) PRENTICE FEES

32. Plaintiff seeks attorney’s fees as tort damages under *Prentice v. North American Title Guaranty Corp.* (1963) 59 Cal.2d 618, as set forth in Section III above.

1 **(C) LOST EARNINGS, FRAUD-DELTA ONLY**

2 33. Plaintiff seeks lost earnings damages, but only to the extent such losses were directly caused
3 by Defendant's fraud or reckless misrepresentation ("fraud-delta"). This claim is limited to
4 the differential between what Plaintiff earned and what Plaintiff would have earned but for
5 Defendant's fraudulent or reckless concealment of the non-investigation.

6 **(D) PHYSICAL EXACERBATION**

7 34. Plaintiff alleges that Defendant's fraud or reckless misrepresentation exacerbated Plaintiff's
8 pre-existing physical condition:

- 9 (a) **Foreseeability:** It was foreseeable that wrongful denial of a claim would cause increased
10 stress and physical symptoms;
11 (b) **Eggshell Plaintiff:** Defendant takes Plaintiff as Defendant finds him;
12 (c) **Objectively Billed:** Plaintiff seeks only medical expenses actually billed and causally linked
13 to the exacerbation.

14 **(E) EMOTIONAL DISTRESS, PARASITIC TO FRAUD ONLY**

15 35. Plaintiff seeks emotional distress damages, but only as parasitic damages accompanying the
16 fraud and negligent-misrepresentation torts. Plaintiff does not assert a standalone claim for
17 intentional infliction of emotional distress.

18 **(F) SPECIAL DAMAGES**

- 19 36. Plaintiff seeks special damages for fraud-caused out-of-pocket expenses, including:
20 (a) Transcript, court-reporter, and certified-copy costs;
21 (b) Subpoena, process-service, and certification fees for obtaining 911, BWC, and CAD materi-
22 als;
23 (c) Document-preparation, authentication, and verification costs;
24 (d) Professional and logistical costs of reconstructing the claim history.

25 **(G) FUTURE DAMAGES, CACI 3903A FOUNDATION**

26 37. To the extent Plaintiff seeks future damages, Plaintiff alleges a foundation under CACI 3903A:
27 Plaintiff's injuries are ongoing; it is reasonably certain that Plaintiff will incur future medi-

cal expenses and/or lost earnings; and the amount of future damages can be estimated with reasonable certainty.

(H) UCL INJUNCTION, SPECIFIC MISREPRESENTATION PATTERN

38. Plaintiff seeks injunctive relief under Business and Professions Code § 17203 to:

- (a) Enjoin Defendant from **issuing denial letters stating an investigation is “concluded”** when foundational incident records have not been obtained or reviewed;
- (b) Require Defendant to comply with Title 10 CCR §§ 2695.4 and 2695.7 by conducting thorough investigations before denying claims; and
- (c) Require Defendant to maintain adequate documentation of claim investigations.

(I) COSTS

39. Plaintiff seeks costs of suit under Code of Civil Procedure §§ 1032 and 1033.5 for costs incurred in this action (CGC-25-631802 only).

(J) PREJUDGMENT INTEREST

40. Plaintiff seeks prejudgment interest under Civil Code §§ 3287(a) and 3288.

SECTION VI: PRIMARY RIGHTS / RESERVATION

DISTINCT PRIMARY RIGHT

41. The primary right asserted here is the right to be free from deliberate or recklessly indifferent misrepresentation by a commercial actor regarding the completeness of an investigative process that directly determined Plaintiff’s economic options as a claimant. The invasion of that right occurred in February 2021 when CSAA caused Plaintiff to believe an investigation had concluded when it had not, thereby destroying Plaintiff’s ability to independently evaluate the true state of the claim and make informed decisions about preservation, evidence-gathering, counsel retention, and negotiation strategy.

41A. **Lucido Five-Factor Walk-Through, Primary-Rights and Collateral-Estoppel Preemption.** To preempt any anticipated defense argument that CGC-21-594102 (the underlying personal-injury negligence action against CSAA’s insured) collaterally estops or otherwise precludes this

1 action, Plaintiff pleads the five-factor issue-preclusion test of *Lucido v. Superior Court* (1990)
2 51 Cal.3d 335, 341 against the CGC-21-594102 record: **(i) Identical Issue:** The issue decided
3 in CGC-21-594102 was whether Subhi Abdelhalim breached a Vehicle Code duty of care toward
4 Plaintiff in the February 4, 2021 collision. The issue in this action is whether CSAA Insurance Ex-
5 change committed common-law fraud, reckless misrepresentation, or negligent misrepresentation,
6 and engaged in unfair business practices, in its February 25, 2021 claim-handling representation
7 that its investigation had “concluded.” These are not identical issues. **(ii) Actually Litigated:**
8 Whether CSAA’s 2021 claim-handling constituted fraud, reckless misrepresentation, or negligent
9 misrepresentation was not litigated in CGC-21-594102; CSAA was not a party to that action and
10 no such claim was tendered to the jury. **(iii) Necessarily Decided:** The CGC-21-594102 9–3 neg-
11 ligence verdict did not necessarily decide, and could not have necessarily decided, any issue of
12 CSAA’s claim-handling conduct, because that issue was not before the trier of fact. **(iv) Final**
13 **Judgment:** The CGC-21-594102 judgment is presently on appeal (A173827), and a judgment on
14 appeal is not final for preclusion purposes. **(v) Same Party or Privy:** CSAA was not a named party
15 in CGC-21-594102 and its privity with the insured, if any, runs only to the insured’s negligence
16 liability, not to CSAA’s independent claim-handling conduct toward a direct third-party claimant.
17 Under the primary-rights doctrine of *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904,
18 and *Crowley v. Katleman* (1994) 8 Cal.4th 666, 681–82, this action and CGC-21-594102 arise
19 from different primary rights and therefore do not share a single “cause of action” for preclusion
20 purposes.

21 42. This primary right is distinct from:

- 22 (a) The personal-injury primary right litigated in CGC-21-594102;
- 23 (b) The extrinsic-fraud primary right asserted in CGC-25-631801; and
- 24 (c) Any right to policy benefits (not asserted here).

25 **EXPRESS DISCLAIMER OF PI DAMAGES**

26 43. Plaintiff expressly disclaims and does not seek in this action any personal-injury damages that
27 were or could have been awarded in CGC-21-594102.

2021-FORWARD DAMAGES ANCHOR

44. All damages sought in this action arise from Defendant's conduct on or after February 25, 2021 (the date of the denial letter). Plaintiff does not seek damages for any conduct predating the February 25, 2021 denial.

44A. Express Double-Recovery Reservation Between CGC-25-631802 and CGC-25-631801.

Plaintiff is simultaneously prosecuting CGC-25-631801, an independent action in equity for extrinsic fraud (vacatur of the CGC-21-594102 judgment procured by fraud on the court). The two actions share a single underlying reckless-disregard-for-the-truth spine (the Silent Witnesses + the Position A vs. Position B contradiction), but the legal theories and remedies are non-duplicative: this action seeks legal-damages relief against CSAA for its 2021 claim-handling conduct, while CGC-25-631801 seeks equitable relief and statutory attorney-deceit damages against CSAA and defense counsel for concealment of evidence during the 2024–2025 trial of CGC-21-594102. To prevent any double recovery and to foreclose any election-of-remedies argument, Plaintiff expressly: (a) disclaims, in this action, any damages measure that would also be recovered as equitable or restitutionary relief under CGC-25-631801 (including any restitution-of-the-\$75,000-cost-judgment that would duplicate equitable vacatur relief in CGC-25-631801); (b) reserves the right, pre-judgment, to elect remedies between the two actions upon any ruling that places them in tension; and (c) affirms that the *Prentice* line-items in ¶ 24A are sought here only to the extent they are not awarded through equitable vacatur in CGC-25-631801.

SECTION VII: TITLE 10 INVESTIGATION STANDARD

WHAT THOROUGH INVESTIGATION REQUIRES

45. Under Title 10 CCR § 2695.7(b), a thorough investigation of an insurance claim requires, at minimum:

- (a) Reviewing all information submitted by the claimant;
- (b) Obtaining and reviewing relevant third-party evidence, including police reports, medical records, and witness statements;

- 1 (c) Obtaining available public records, including 911 recordings, CAD records, and body-worn
2 camera footage where relevant;
3 (d) Documenting the investigation in the claim file; and
4 (e) Basing any denial on a reasonable evaluation of all available evidence.

5 **WHAT CSAA DID NOT DO**

6 46. Defendant failed to conduct a thorough investigation as required by Title 10 CCR. Specifi-
7 cally:

- 8 (a) Defendant did not obtain or review the 911 recordings from the date of the collision;
9 (b) Defendant did not obtain or review body-worn camera footage from responding officers;
10 (c) Defendant did not obtain or review CAD records documenting the emergency response;
11 (d) Defendant did not interview witnesses whose contact information was available;
12 (e) Defendant did not adequately document the basis for its denial in the claim file; and
13 (f) Defendant issued a denial based on an incomplete and one-sided review of the evidence.

14 **CLARIFICATION: NOT A PRIVATE INS. CODE § 790.03 CLAIM**

15 47. This section supports the UCL “unlawful” prong, the standard-of-care floor for negligent mis-
16 representation under Civil Code § 1710(2), and the reckless-disregard scienter floor at Section
17 0. It is **not** pleaded as a private Insurance Code § 790.03 cause of action. *Moradi-Shalal v.*
18 *Fireman’s Fund Insurance Companies* (1988) 46 Cal.3d 287. The § 790.03 violations are
19 predicate conduct for UCL purposes only, and standard-of-care evidence for the negligence-
20 tier and reckless-tier claims. *State Farm Fire & Casualty Co. v. Superior Court* (1996) 45
21 Cal.App.4th 1093, 1103–04.

22 **47A. Insurance Code § 790.03(h)(5), Liability-Reasonably-Clear Standard as UCL Unlaw-**
23 **ful Predicate and Reckless-Disregard Indicium.** In addition to the Title 10 CCR § 2695.4
24 and § 2695.7 predicates pleaded at ¶¶ 45–46, Plaintiff alleges that CSAA’s February 25, 2021
25 denial violated Insurance Code § 790.03(h)(5). Liability was reasonably clear to CSAA on or
26 before February 25, 2021 because each of the three foundational first-responder sources (911 au-
27 dio / CAD, SFPD BWC footage with on-camera independent-eyewitness corroboration from Justin
28 Rosemond, and Plaintiff’s contemporaneous 911 report) was identifiable from the face of the SFPD

1 Incident Report and available to CSAA by routine public-records request or subpoena. Pleading §
2 790.03(h)(5) here is not an assertion of a private right of action under § 790.03, which remains pre-
3 cluded by *Moradi-Shalal*, but is pleaded **solely as a UCL unlawful predicate** consistent with the
4 *Moradi-Shalal* carve-out recognized in *State Farm Fire & Casualty Co. v. Superior Court* (1996)
5 45 Cal.App.4th 1093, 1103–04, and as additional probative evidence of reckless disregard within
6 the meaning of Section 0.

7 **SECTION VIII: DELAYED DISCOVERY**

8 **THREE-ANCHOR DISCOVERY ACCRUAL**

9
10 48. Plaintiff did not discover the facts constituting the fraud, reckless misrepresentation, or negli-
11 gent misrepresentation at the time of the February 25, 2021 denial, as the denial letter actively
12 concealed the non-investigation.

13 49. The discovery accrual is anchored to three consecutive record events:

14 (a) **January 17, 2025:** Defense MIL No. 17 filings asserted the 911 and related materials had
15 not been produced in discovery and were of “unknown provenance”, revealing that CSAA’s
16 2021 representation of investigative completeness was false;

17 (b) **February 18, 2025:** Pretrial hearing testimony by Jeremy Jessup stated those materials had
18 been produced to defense counsel in August–September 2022, while defense counsel simul-
19 taneously stated the 911 call was “news to me,” creating a direct internal contradiction; and

20 (c) **April 16, 2025:** Trial admission by defense counsel that the materials “were provided by
21 Dolan,” confirming the materials had been in defense possession all along.

22 50. These three events, taken together, constitute the first point at which Plaintiff could reasonably
23 have determined that CSAA’s 2021 representation of investigative completeness was false,
24 and the first point at which Plaintiff could reasonably have determined that CSAA had acted
25 with reckless disregard for the truth.

26 51. Plaintiff filed this action within the applicable statute of limitations following these discovery
27 events.

28 **51.1. Continuing-Accrual Backstop Under *Aryeh*.** Independently of the discovery-rule accrual

1 at ¶¶ 48–50 above, Plaintiff pleads continuing accrual as a backstop limitations theory under *Aryeh*
2 v. *Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1192–1199 (Cal. Sup. Ct.). Under
3 *Aryeh*, where a defendant engages in a series of recurring wrongful acts, each new wrong starts its
4 own limitations clock; the doctrine “operates at the policy level: where a single course of wrongful
5 conduct is divisible into discrete wrongs giving rise to discrete claims, the statute of limitations runs
6 separately on each.” 55 Cal.4th at 1199. CSAA’s institutional “deny-delay-defend” practice alleged
7 at ¶¶ 28–30 above is a continuing course of conduct under which: (a) each post-February 25, 2021
8 communication maintaining the “concluded investigation” position to Plaintiff (in particular the
9 January 17, 2025 / February 18, 2025 / April 16, 2025 record events at ¶¶ 49(a)–(c)), (b) each post-
10 notice failure to repudiate or correct that position (¶ 6A above), and (c) each successive UCL §
11 17200 misrepresentation or omission to a member of the third-party-claimant public (¶¶ 65–67A)
12 is a discrete wrong from which a new limitations clock runs. *Aryeh*, 55 Cal.4th at 1192–1199. The
13 continuing-accrual rule is doctrinally separate from delayed discovery and operates regardless of
14 whether Plaintiff was on inquiry notice as of any earlier date.

15 **51A. Position A vs. Position B as Reckless-Disregard Confirmation.** The factual contradiction
16 between (a) CSAA’s February 25, 2021 written representation that its investigation of the February
17 4, 2021 collision was “concluded”, necessarily implying that CSAA had retrieved and reviewed
18 the Silent Witnesses, and (b) CSAA’s representations through its retained panel counsel in CGC-
19 21-594102 that CSAA had “no idea where” the same Silent Witnesses “came from” and that the
20 materials were “not produced in discovery” (MIL Nos. 6 and 17, Jan. 17, 2025; Feb. 18, 2025
21 hearing tr. p. 141, ll. 4–11; April 16, 2025 trial admission), establishes that one of those two
22 statements is necessarily false. Both representations are statements of CSAA itself: Position A was
23 made directly by CSAA, and Position B was made by CSAA’s authorized litigation agents acting
24 in CSAA’s pecuniary interest under the policy. Civil Code §§ 2330 and 2338; Evidence Code §
25 1222 (see also *American Mutual Liability Ins. Co. v. Superior Court* (1974) 38 Cal.App.3d 579,
26 591–592; *Gulf Insurance Co. v. Berger, Kahn, Shafon, Moss, Figler, Simon & Gladstone* (2000) 79
27 Cal.App.4th 114, 124; *Purdy v. Pacific Automobile Ins. Co.* (1984) 157 Cal.App.3d 59, 76 (panel-
28 counsel-as-agent of carrier-principal for claims-handling and litigation-defense communications)).

1 The structural impossibility that CSAA both made and contradicted the same fact is the textbook
2 reckless-disregard pattern under *Engalla*, 15 Cal.4th at 974: a speaker who has both made and
3 contradicted the same fact cannot honestly believe either pole. The doctrine of judicial estoppel,
4 *MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal.4th 412, 422
5 (Cal. Sup. Ct.) (see also *Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 181;
6 *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986–987), bars CSAA from contesting in this action
7 that its February 25, 2021 representation was either knowingly false or recklessly indifferent to the
8 truth.

10 CAUSES OF ACTION

11 FIRST CAUSE OF ACTION: FRAUD, INTENTIONAL MISREPRESENTATION AND CONCEALMENT (KNOWING OR RECKLESS-DISREGARD 12 TIER)

14 (Civil Code §§ 1709, 1710(1), and 1710(3), Against CSAA Insurance Exchange and DOES 1
15 through 50, inclusive)

16 52. Plaintiff incorporates by reference all preceding paragraphs.

17 52A. **Scienter recital (Engalla / CACI).** The scienter element of this cause of action is satisfied
18 by knowing falsity (Civil Code section 1710(1)) and, in the alternative, by reckless disregard for
19 the truth as defined by *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974
20 (quoting *Yellow Creek*), and CACI Nos. 1903 and 1907 (see also *Gagne v. Bertran* (1954) 43
21 Cal.2d 481, 487–488). The Section 0 reckless-disregard showing is incorporated into this cause of
22 action by reference.

23 52B. **Wrongful-Conduct Scope, Express Anti-SLAPP Disavowal (Gravamen Anchor).** The
24 wrongful conduct pleaded in this cause of action is **not** predicated on, and Plaintiff expressly dis-
25 avows any theory of liability predicated on: (a) the filing or prosecution of CGC-21-594102 by
26 CSAA's insured or by defense counsel; (b) any motion, in-limine application, pleading, or other
27 court filing made in connection with CGC-21-594102; (c) statements or arguments made in open

1 court, in depositions, or in written discovery responses in CGC-21-594102; or (d) any other act or
2 statement that would constitute “an act in furtherance of a person’s right of petition or free speech
3 . . . in connection with a public issue” within the meaning of Code of Civil Procedure § 425.16(e).
4 The wrongful conduct in this cause of action is CSAA’s pre-litigation, non-communicative 2021
5 claim-handling conduct, the failure to investigate, the issuance of a denial letter misrepresenting
6 investigative completeness, and the omission of foundational first-responder evidence, which oc-
7 curred before any litigation was pending or contemplated. The “gravamen” inquiry that controls
8 this disavowal is governed by *Park v. Board of Trustees of California State University* (2017)
9 2 Cal.5th 1057, 1062–1064 (Cal. Sup. Ct.: anti-SLAPP analysis turns on the “elements of the
10 challenged claim” and the “specific[]” wrongful “acts” that “supply [the] elements,” not on the
11 broader litigation backdrop in which protected activity may incidentally have occurred). Under
12 *Park*, a claim is not subject to § 425.16 merely because protected activity is part of the surround-
13 ing factual context; the wrongful acts that supply the elements of Plaintiff’s fraud, concealment,
14 negligent-misrepresentation, UCL, and declaratory-relief claims here are the pre-litigation 2021
15 claim-handling acts identified at ¶¶ 1–9 and ¶¶ 28–30 above, none of which is protected activity.
16 Under ¶ 16A and ¶ 20 above, this conduct is outside the scope of the Civil Code § 47(b) litiga-
17 tion privilege, and under ¶ 21A above, it is categorically outside the protected-activity scope of §
18 425.16.

19 53. The wrongful conduct pleaded in this cause of action is CSAA’s non-communicative failure
20 to investigate the claim, its intentional or reckless omission of obtaining material evidence,
21 and its active concealment of that failure (extrinsic fraud), not any later petitioning conduct,
22 motion practice, or in-court advocacy.

23 54. CSAA had a duty to investigate the claim fairly, yet it failed to do so. It actively concealed
24 this failure by providing Plaintiff with a denial letter containing the false representation that
25 it had “carefully reviewed the facts.” That representation was made with knowing falsity,
26 or, in the alternative, with reckless disregard for the truth, within the meaning of *Engalla v.*
27 *Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974 (see also *Gagne v. Bertran*
28 (1954) 43 Cal.2d 481, 487–488).

55. The denial letter serves as evidence of the omission and the extrinsic fraud, showing that CSAA intended Plaintiff to rely on the false completeness to suppress his claim.

56. Plaintiff justifiably relied on the concealment.

57. Plaintiff suffered damage as a proximate result.

57A. **Reckless-Disregard Pleading.** This Cause of Action is pleaded with the alternative scienter floor articulated in Section 0 above: knowing falsity, or, in the alternative, reckless disregard for the truth. The factual record at ¶¶ 0.2(a)–(e), 8–9, 28–30, 30A, 30B, and 51A establishes reckless disregard as a matter of pleading sufficiency under *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29, and *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645–646.

57B. **Wilson / genuine-dispute pre-emption.** The reckless-disregard pleading at Section 0 and paragraphs 0.2(a)–(e) forecloses the “genuine dispute” defense recognized in *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 723. Under *Wilson*, the genuine-dispute doctrine is unavailable where the insurer fails to thoroughly and fairly investigate the claim. The reckless-disregard scienter floor established by the factual record — CSAA’s closing of the file without retrieving any Silent Witness, in the face of inquiry notice on the SFPD report — establishes that failure as a matter of pleading, not trial proof.

SECOND CAUSE OF ACTION: FRAUD, CONCEALMENT / HALF-TRUTH (KNOWING OR RECKLESS-DISREGARD TIER)

(Civil Code § 1710(3), Against CSAA Insurance Exchange and DOES 1 through 50, inclusive)

58. Plaintiff incorporates by reference all preceding paragraphs.

59. The wrongful conduct pleaded in this cause of action is the non-communicative institutional failure to investigate, which CSAA concealed via misleading half-truths in its ordinary business communications.

60. By issuing a denial “based on the facts currently available,” CSAA omitted the material fact that it had not yet obtained, reviewed, or responsibly accounted for foundational incident information, specifically, the 911 audio, BWC footage, CAD logs, and supplemental SFPD report (the Silent Witnesses).

60A. **Statutory Predicate, Civil Code § 1710(3).** Civil Code § 1710(3) defines deceit, in relevant

part, as “[t]he suppression of a fact, by one who is bound to disclose it, or who gives information of other facts which are likely to mislead for want of communication of that fact.” Plaintiff pleads this cause of action expressly under § 1710(3) on two independent theories: (i) **bound-to-disclose suppression**, predicated on CSAA’s regulatory and common-law duties to disclose described in ¶ 60B; and (ii) **likely-to-mislead half-truth**, predicated on CSAA’s voluntary statement that the investigation was “concluded,” which created a duty to complete the disclosure under *Randi W. v. Muroc Joint Unified School Dist.* (1997) 14 Cal.4th 1066, 1083; *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 346; and *Lovejoy v. AT&T Corp.* (2004) 119 Cal.App.4th 151, 158.

60B. Regulatory Duty to Disclose. CSAA’s duty to disclose, for purposes of Civil Code § 1710(3), is supplied by California regulatory law, customary insurance-industry practice, and common-law principles of superior knowledge:

- (a) **10 CCR § 2695.7(g)** prohibits an insurer from “represent[ing] or imply[ing] that a claim will be denied without conducting and fully documenting a thorough, fair, and objective investigation.” This regulation, by its terms, imposes an affirmative obligation not to imply the existence of a thorough investigation that has not occurred.
- (b) **10 CCR § 2695.7(d)** requires the insurer’s claims decision to be based on “all information reasonably available.”
- (c) **Insurance Code § 790.03(h)(1)** prohibits the misrepresentation of “pertinent facts” to claimants.
- (d) **Superior knowledge.** *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 346; *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336–337; *Vai v. Bank of America* (1961) 56 Cal.2d 329, 342.

61. Plaintiff reasonably relied on the resulting half-truth and omission.

62. Plaintiff suffered damages as a proximate result.

62A. Reckless-Disregard Pleading. The intent element of § 1710(3) is satisfied either by (i) actual knowledge of the suppressed fact, or (ii) reckless disregard for whether the disclosure is complete. *Engalla*, 15 Cal.4th at 974; CACI 1901 (see also *Gagne*, 43 Cal.2d at 487–488). The factual record at ¶¶ 0.2(a)–(e), 8–9, 28–30, 30A, and 30B establishes the reckless-disregard alternative as a matter of pleading sufficiency.

1 **THIRD CAUSE OF ACTION: VIOLATION OF BUSINESS AND PRO-**
2 **FESSIONS CODE § 17200 ET SEQ.**

3 (Against CSAA Insurance Exchange and DOES 1 through 50, inclusive)

4 63. Plaintiff incorporates by reference all preceding paragraphs.

5 64. Plaintiff pleads this cause of action in the alternative and as subordinate to the fraud and
6 negligent-misrepresentation causes of action.

7 65. **(a) Unlawful prong:** CSAA's conduct is unlawful because it constitutes common-law fraud
8 under Civil Code §§ 1709–1710(1)/(3), reckless misrepresentation within the meaning of
9 *Engalla*, 15 Cal.4th at 974, and negligent misrepresentation under Civil Code § 1710(2) (see
10 also *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408), each independently pleaded
11 in the First, Second, and Fourth Causes of Action. The “unlawful” prong is also independently
12 satisfied by the regulatory predicates at 10 CCR § 2695.7(b)/(d)/(g), 10 CCR § 2695.5(b), and
13 Insurance Code § 790.03(h)(1)/(3)/(5), each pleaded solely as a UCL unlawful predicate and
14 not as a private right of action.

15 66. **(b) Fraudulent prong:** CSAA's systematic misrepresentation of investigation completeness
16 to unrepresented third-party claimants, made with knowing falsity or with reckless disregard
17 for the truth, constitutes a business practice likely to deceive the public.

18 66A. **Reasonable-Consumer Test, UCL Fraudulent-Prong Standard.** *Cel-Tech Communica-*
19 *tions, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 187 (Cal. Sup. Ct.: UCL
20 “fraudulent” prong measured by likelihood that the public will be deceived) (see also *Williams v.*
21 *Gerber Products Co.* (9th Cir. 2008) 552 F.3d 934, 938; *Chapman v. Skype, Inc.* (2013) 220
22 Cal.App.4th 217, 226). A reasonable unrepresented third-party claimant in CSAA's claims-intake
23 universe is likely to be deceived by a denial letter that represents the insurer's investigation as “con-
24 cluded” after “careful review” when foundational first-responder records have not been obtained,
25 because a reasonable claimant, lacking independent means to audit an insurer's internal claims file,
26 will rely on the insurer's representation of investigative completeness as a basis for assessing his
27 or her claim and its viability.

28 67. **(c) Unfair prong:** The “deny-delay-defend” scheme constitutes an unfair business practice

1 because it produces a commercial benefit to CSAA (suppression of valid claims, reduction of
2 investigation costs, reserve protection) through means that cause harm to claimants dispro-
3 portionate to any legitimate claims-management justification.

4 **67A. Cel-Tech Tethering for the “Unfair” Prong.** *Cel-Tech Communications, Inc. v. Los Angeles*
5 *Cellular Telephone Co.* (1999) 20 Cal.4th 163, 187. The “deny-delay-defend” practice alleged at
6 ¶¶ 28–30 is tethered to (i) the legislative policy declared in Insurance Code § 790.03(h)(1), (3), and
7 (5); (ii) the regulatory policy declared in 10 CCR § 2695.7(b), (d), and (g); and (iii) the common-
8 law policies announced in *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818–819,
9 and *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721 (both Cal. Sup. Ct.) (see
10 also *Mariscal, Maslo, and Hamilton*, cited supra at ¶ 30B(i)–(j)). The “unfair” prong is therefore
11 satisfied under the *Cel-Tech* tethering test (see also *Drum v. San Fernando Valley Bar Ass’n* (2010)
12 182 Cal.App.4th 247, 257 (consumer-balancing variant)).

13 68. Plaintiff alleges he lost money or property as a result of that conduct.

14 **68A. Reckless-Disregard Pleading (Third Cause of Action).** This Cause of Action is pleaded
15 with the alternative scienter floor articulated in Section 0 above. The factual record at §§ 0.1–0.5,
16 ¶¶ 8–9, 28–30, 30A, 30B, 51A, and 51.1 establishes the reckless-disregard alternative as a matter
17 of pleading sufficiency for the UCL “fraudulent” prong, which is satisfied by reckless misstatement
18 under *Cel-Tech*, 20 Cal.4th at 187, and *Engalla*, 15 Cal.4th at 974, and for the UCL “unlawful”
19 prong, which is independently satisfied by the regulatory predicates at ¶ 65 above.

20 69. Plaintiff seeks under this cause of action injunctive relief and, only to the extent legally avail-
21 able, restitutionary relief.

22 **FOURTH CAUSE OF ACTION: NEGLIGENT MISREPRESENTATION** 23 **(NO-REASONABLE-GROUND TIER)**

24 (Civil Code § 1710(2), Against CSAA Insurance Exchange and DOES 1 through 50, inclusive)

25 70. Plaintiff incorporates by reference all preceding paragraphs.

26 71. Civil Code § 1710(2) defines deceit, in relevant part, as “[t]he assertion, as a fact, of that
27 which is not true, by one who has no reasonable ground for believing it to be true.” Under
28 California law a negligent-misrepresentation cause of action is established by proof of (a) a

1 representation of past or existing material fact, (b) the representation was not true, (c) the
2 maker had no reasonable ground for believing the representation was true, (d) the represen-
3 tation was made with intent to induce reliance, (e) plaintiff justifiably relied, and (f) damage
4 resulted. *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408; *Quelimane Co. v.*
5 *Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.

6 **72. (Element 1, Representation of past or existing material fact.)** On February 25, 2021, De-
7 fendant CSAA Insurance Exchange, by and through its claims representative Sarah Rash and
8 the supervisory and managing personnel who reviewed and approved the denial, represented
9 in writing to Plaintiff that “We have concluded our investigation of your claim. Based on
10 our investigation, and after carefully reviewing the facts and circumstances of your claim, we
11 have concluded that our insured is not liable. . . .” That representation is a representation of
12 past or existing fact concerning what CSAA had actually done, namely, what investigative
13 steps it had performed, what records it had obtained, and what evidence it had reviewed and
14 weighed before issuing the denial. *Borba v. Thomas* (1977) 70 Cal.App.3d 144, 152.

15 **73. (Element 2, Falsity.)** The representation in ¶ 72 was false. As of February 25, 2021, CSAA
16 had not retrieved or reviewed any of the four foundational first-responder records (the Silent
17 Witnesses).

18 **74. (Element 3, No reasonable ground for believing the representation true.)** Under *Bily*
19 *v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408 (negligent-misrepresentation “no
20 reasonable ground” floor), and *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713,
21 720–721 (Cal. Sup. Ct.: insurer’s investigation measured against an objective reasonable-
22 insurer baseline rather than the insurer’s subjective belief), the inquiry is what an objectively
23 reasonable insurer in the same position would have done. Each of the four Silent Witnesses
24 identified in ¶ 8 was reasonably available to CSAA on or before February 25, 2021. CSAA did
25 not obtain or attempt to obtain any of them. CSAA’s failure was not objectively reasonable.

26 **74A. Regulatory floor for “no reasonable ground.”** California Code of Regulations, Title 10,
27 § 2695.7(d) provides that an insurer’s claims decision must be “based on all information reason-
28 ably available.” 10 CCR § 2695.7(b) requires that an accept-or-deny determination follow receipt

1 of information sufficient to make the determination. 10 CCR § 2695.7(g) prohibits the insurer
2 from “represent[ing] or imply[ing] that a claim will be denied without conducting and fully doc-
3 umenting a thorough, fair, and objective investigation.” A representation that an investigation has
4 been “concluded” while four categories of reasonably available extrinsic evidence have not been
5 retrieved is, as a matter of regulatory law, made without reasonable ground for believing it true.

6 **74B. Reckless-Disregard Overlay (Section 0 ladder).** The same conduct that establishes “no
7 reasonable ground” under § 1710(2) also establishes reckless disregard under § 1710(1) when the
8 speaker is conscious of the absence of reasonable ground. *Engalla*, 15 Cal.4th at 974; *Bily*, 3
9 Cal.4th at 407–408 (see also *Gagne*, 43 Cal.2d at 487–488). Plaintiff pleads this Cause as a true
10 alternative to the First and Second Causes of Action: if the trier of fact does not find subjective
11 awareness of falsity sufficient for § 1710(1), the same record establishes liability under § 1710(2).

12 **75. (Element 4, Intent to induce reliance.)** CSAA sent the February 25, 2021 letter directly to
13 Plaintiff, an unrepresented third-party claimant, for the express purpose of inducing Plaintiff
14 to abandon, settle for nominal value, or delay the prosecution of the claim.

15 **76. (Element 5, Justifiable reliance.)** Plaintiff justifiably relied on CSAA’s representation that
16 its investigation was “concluded.” A reasonable third-party claimant is entitled to treat a
17 regulated insurer’s representation about the status and scope of its own internal investigation
18 as a representation of fact, because such a claimant has no independent means to audit the
19 insurer’s claim file. *Borba*, 70 Cal.App.3d at 152; *Quelimane*, 19 Cal.4th at 47.

20 **77. (Element 6, Damages.)** As a direct and proximate result of CSAA’s negligent misrepresenta-
21 tion, Plaintiff suffered damages including the categories pleaded at Section V, ¶¶ 31–37 above
22 and Section III, ¶¶ 23–24A above.

23 **78. (Pleading-stage standard.)** This cause of action is pleaded with specificity sufficient under
24 *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645–646.

25 **79. (Non-duplication.)** This cause of action does not duplicate the First or Second Causes
26 of Action. The First and Second require knowing or reckless intentional misrepresenta-
27 tion/concealment; this Fourth requires only negligence. The four causes are pleaded in the
28 alternative under Code of Civil Procedure § 431.30(c). Nor does this cause assert a pri-

vate cause of action under Insurance Code § 790.03; the regulatory paragraphs in ¶ 74A are pleaded only as the standard-of-care floor.

FIFTH CAUSE OF ACTION: DECLARATORY RELIEF

(Code of Civil Procedure § 1060, Against CSAA Insurance Exchange and DOES 1 through 50, inclusive)

80. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

81. Code of Civil Procedure § 1060 authorizes any person interested in a written instrument or under a contract, or who desires a declaration of his or her rights or duties with respect to another, to bring an action in the superior court for a declaration of his or her rights and duties. The remedy is appropriate where there exists an actual controversy relating to the legal rights and duties of the respective parties. *Maguire v. Hibernia S. & L. Soc.* (1944) 23 Cal.2d 719, 728; *Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582.

82. **(Actual controversy.)** An actual, present, and ripe controversy exists between Plaintiff and Defendant CSAA on at least the following material points, each of which is contested in this action and bears on Plaintiff's and CSAA's respective legal rights and duties going forward:

- (a) Whether CSAA's February 25, 2021 representation that its investigation was "concluded" — and that it had "carefully reviewed the facts and circumstances of [the] claim" — was a representation of past or existing material fact (Plaintiff's position) or a non-actionable opinion or aspirational statement (CSAA's anticipated position).
- (b) Whether each of the Silent Witnesses identified in ¶ 73 — namely, the 911 audio recording, the SFPD CAD event record, the SFPD body-worn camera footage of the responding officers, and the supplemental SFPD report relating to the February 4, 2021 collision — was "reasonably available" to CSAA within the meaning of 10 CCR § 2695.7(d) on or before February 25, 2021.
- (c) Whether CSAA had retrieved or reviewed any of the four Silent Witnesses identified in ¶ 73 on or before February 25, 2021.
- (d) Whether the absence of the Silent Witnesses from CSAA's claim file as of February 25, 2021

1 rendered any “concluded investigation” representation made on that date a representation
2 made without reasonable ground for believing it true within the meaning of Civil Code §
3 1710(2), *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408, and *Wilson v. 21st*
4 *Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721.

5 83. **(Necessity of declaration.)** A declaration is necessary and proper at this time because (i)
6 the same operative facts underlie multiple pending and contemplated proceedings (including
7 CGC-25-631801 and any future first-party or regulatory proceeding), (ii) CSAA continues
8 to take inconsistent positions on possession and knowledge of the Silent Witnesses (com-
9 pare CSAA’s February 25, 2021 representation that the investigation was “concluded” with
10 CSAA’s panel-counsel representations in MIL Nos. 6 and 17 (Jan. 17, 2025), at the February
11 18, 2025 hearing, and at trial in CGC-21-594102, that CSAA had “no idea where” the 911 /
12 BWC / CAD / supplemental-report materials “came from” and that they were “not produced
13 in discovery” — set forth in detail at ¶¶ 48–51 above), and (iii) declaratory relief will provide
14 collateral-estoppel certainty across those proceedings under *Mycogen Corp. v. Monsanto Co.*
15 (2002) 28 Cal.4th 888, 904, and *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341.

16 84. **(Judicial-estoppel predicate.)** The factual contradiction between (a) CSAA’s February 25,
17 2021 written representation that its investigation was “concluded” and (b) CSAA’s panel-
18 counsel representations in MIL Nos. 6 and 17 and at the February 18, 2025 hearing that
19 CSAA had “no idea where” the Silent Witnesses “came from” — both of which are state-
20 ments of CSAA itself under Civil Code §§ 2330 and 2338 and Evidence Code § 1222 (see
21 also *American Mutual Liability Ins. Co. v. Superior Court* (1974) 38 Cal.App.3d 579, 591–
22 592; *Gulf Insurance Co. v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone* (2000)
23 79 Cal.App.4th 114, 124 (panel counsel as authorized agent of the carrier-principal)) — pro-
24 vides an independent ground for judicial estoppel under *MW Erectors, Inc. v. Niederhauser*
25 *Ornamental & Metal Works Co.* (2005) 36 Cal.4th 412, 422 (Cal. Sup. Ct.) (see also *Jack-*
26 *son v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 181; *Aguilar v. Lerner* (2004) 32
27 Cal.4th 974, 986–987). CSAA cannot, in this action, take a position factually inconsistent
28 with the representation it made in CGC-21-594102, and vice versa.

1 85. **(Specific declarations sought.)** Plaintiff therefore prays for a declaration that:

- 2 (a) CSAA's representation in the February 25, 2021 letter that its investigation was "concluded,"
3 and that CSAA had "carefully reviewed the facts and circumstances of [the] claim," was a
4 representation of past or existing material fact regarding the state of CSAA's own claim file
5 and the steps CSAA had performed.
- 6 (b) Each of the four Silent Witnesses identified in ¶ 73 was "reasonably available" to CSAA
7 within the meaning of 10 CCR § 2695.7(d) on or before February 25, 2021.
- 8 (c) CSAA had not retrieved or reviewed any of the four Silent Witnesses on or before February
9 25, 2021.
- 10 (d) CSAA's February 25, 2021 "concluded investigation" representation was made without any
11 reasonable ground for believing it true within the meaning of Civil Code § 1710(2), *Bily v.*
12 *Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408, and *Wilson v. 21st Century Ins. Co.*
13 (2007) 42 Cal.4th 713, 720–721.
- 14 (e) CSAA is judicially estopped from contesting in this action, or in any related action including
15 but not limited to CGC-25-631801 and CGC-21-594102, that as of February 25, 2021 it
16 possessed, reviewed, and based its liability determination upon the materials it represented to
17 have reviewed.

18 86. **(Non-duplication.)** This cause of action does not duplicate any of the legal-damages causes
19 pleaded in the First through Fourth Causes of Action, and is sought in addition to, not in
20 lieu of, those causes. Declaratory relief here is prospective and preclusive in character; the
21 legal-damages causes are retrospective and compensatory.

22 86A. **Reckless-Disregard Pleading (Fifth Cause of Action).** This Cause of Action is pleaded
23 with the alternative scienter floor articulated in Section 0 above. The reckless-disregard scienter
24 floor at §§ 0.1–0.5 and the Position A vs. Position B structural-impossibility frame at ¶ 51A supply
25 the substantive predicate for the declarations sought at ¶ 85; the declarations sought are themselves
26 either knowing-falsity declarations or reckless-disregard declarations, in the alternative, consistent
27 with the alternative-pleading rule of CCP § 431.30(c) and the *Mycogen Corp. v. Monsanto Co.*
28 (2002) 28 Cal.4th 888, 904, primary-rights framework.

87. WHEREFORE, Plaintiff prays for declaratory relief on the Fifth Cause of Action as set forth in the prayer below.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants, and each of them, as follows. Each tier below incorporates by reference, and is anchored in, the reckless-disregard scienter floor pleaded at Section 0, §§ 0.1–0.5.

TIER 1: COMPENSATORY DAMAGES

1. For general and special damages according to proof on the First, Second, and Fourth Causes of Action, predicated on the reckless-disregard scienter floor at Section 0;
2. For reliance damages under Civil Code § 1709, predicated on the reckless-disregard scienter floor at Section 0.

TIER 2: PRENTICE DAMAGES

3. For *Prentice v. North American Title Guaranty Corp.* (1963) 59 Cal.2d 618 fees as tort damages on the First, Second, and Fourth Causes of Action, including the four line-items enumerated at ¶ 24A above, predicated on the reckless-disregard scienter floor at Section 0.

TIER 3: UCL INJUNCTIVE AND RESTITUTIONARY RELIEF

4. For restitutionary and injunctive relief to the extent legally available under Business and Professions Code § 17200 et seq., including an injunction prohibiting CSAA from issuing denial letters stating an investigation is “concluded” when foundational incident records have not been obtained or reviewed, predicated on the reckless-disregard scienter floor at Section 0 and the Cel-Tech tethering at ¶ 67A.

TIER 4: DECLARATORY RELIEF (FIFTH CAUSE OF ACTION)

5. **On the Fifth Cause of Action (Declaratory Relief)**, for a declaration, predicated on the reckless-disregard scienter floor at Section 0, that:
 - (a) CSAA’s February 25, 2021 “concluded investigation” representation was a representation of past or existing material fact;

- (b) Each of the four Silent Witnesses identified at ¶ 73 was reasonably available to CSAA on or before February 25, 2021 within the meaning of 10 CCR § 2695.7(d);
- (c) CSAA had not retrieved or reviewed any of the four Silent Witnesses on or before February 25, 2021;
- (d) CSAA's February 25, 2021 representation was made without reasonable ground for believing it true within the meaning of Civil Code § 1710(2), *Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407–408, and *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721; and
- (e) CSAA is judicially estopped from contesting in this action, in CGC-25-631801, in CGC-21-594102, or in any related proceeding, the matters declared in (a)–(d).

TIER 5: PUNITIVE DAMAGES

6. For punitive damages where legally recoverable and according to proof under Civil Code § 3294, predicated on the reckless-disregard / willful-blindness scienter floor at Section 0 and ¶ 30A.

TIER 6: COSTS, INTEREST, AND GENERAL RELIEF

7. For costs of suit incurred herein under CCP §§ 1032, 1033.5;
8. For prejudgment interest as allowed by law under Civil Code §§ 3287(a), 3288;
9. For such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff hereby demands trial by jury on all issues so triable.

Dated: April 28, 2026

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per 7624 Melody Drive Rohnert Park, CA 94928 Tel: 650.488.7510 Email: soltrinox@gmail.com

1 **VERIFICATION**

2 I, FRANCISCUS DYLAN ROSARIO, am the Plaintiff in the above-entitled action. I have read
3 the foregoing Third Amended Complaint and know its contents. The same is true of my own
4 knowledge except as to matters stated on information and belief, and as to those matters I believe
5 them to be true.

6 I declare under penalty of perjury under the laws of the State of California that the foregoing is
7 true and correct.

8 Executed on _____ at _____, California.

9 _____
10 FRANCISCUS DYLAN ROSARIO

Electronic proof of service (POS-050) is filed concurrently with this Third Amended Complaint.

/s/ Franciscus Dylan Rosario



FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per